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Presidential Removal Power and the Roberts Court

George W. Bush's appointment to the Supreme Court of Chief Justice John Roberts and Justice Samuel Alito brought to the Court two judges who, as lawyers for the Reagan Administration, had helped incubate within the executive branch a theory of the "unitary executive" consistent with the views expressed by Justice Scalia in his *Morrison v. Olson* dissent. It was therefore not altogether surprising that, with Justices Scalia and Kennedy (who had recused himself in *Morrison*) as the only remaining Roberts Court Justices who had also served on the *Morrison* bench that the Roberts Court would be open to rethinking the rationale of earlier cases on presidential removal power.

1. *Free Enterprise Fund v. PCAOB*. The first strong evidence of Roberts Court rethinking was *Free Enterprise Fund v. Public Company Accounting Oversight Board*, 561 U.S. 477 (2010). Congress had created the Public Company Accounting Oversight Board [PCAOB] under the Sarbanes-Oxley Act of 2002 (or Act), 116 Stat. 745, in order to tighten up regulation of the accounting industry. The Board comprises five members, who are appointed by the Securities and Exchange Commission to staggered five-year terms. Its mandate is to regulate the practices of accounting firms that audit public companies. In so doing, it helps to enforce the Sarbanes-Oxley Act, other federal securities laws, the Commission's rules, its own rules, and professional accounting standards. As the Court explained:

The [Sarbanes-Oxley] Act places the Board under the SEC's oversight, particularly with respect to the issuance of rules or the imposition of sanctions (both of which are subject to Commission approval and alteration). But the individual members of the Board—like the officers and directors of the self-regulatory organizations—are substantially insulated from the Commission's control. The Commission cannot remove Board members at will, but only "for good cause shown," "in accordance with" certain procedures.

561 U.S. at 486. The issue before the Court was whether Congress could constitutionally protect from at-will removal the members of one agency—the PCAOB—who had been appointed by the heads of another agency—the SEC—who the parties agreed had statutory protection against at-will removal. That agreement was notable because the statute is actually silent on removal. It reflects conventional understanding, and the agency is referred to as an "independent regulatory agency" in the much-later enacted Paperwork Reduction Act, 44 U.S.C. § 3502(5). The SEC, of course, would wish to assert its members independent status, but the *Free Enterprise Fund* presumably agreed to the point without which the issue of the PCAOB's double layer or tenure protection would not have been presented. After the PCAOB issued a report critical of an accounting firm that belonged as a member to the *Free Enterprise Fund*, that firm and the fund challenged the PCAOB's structure as a violation of the separation of powers.

The Court, in a 5-4 opinion penned by Chief Justice Roberts, held that the double layer of protection from at-will removal was unconstitutional. The Court cited the Decision of 1789 as settling an interpretation of Article II, reaffirmed in *Myers*, that the President's faithful execution obligation requires some degree of authority to remove executive officers. Although earlier decisions had affirmed Congress's authority to protect certain principal (*Humphrey's Executor*) and inferior (*Morrison v. Olson*) officers from at-will removal, no earlier case had involved inferior

officers protected from at-will removal by the agency heads who appointed them, who were also protected from at-will removal. In assessing the design of the PCAOB, the Court wrote:

The result is a Board that is not accountable to the President, and a President who is not responsible for the Board. The added layer of tenure protection makes a difference. Without a layer of insulation between the Commission and the Board, the Commission could remove a Board member at any time, and therefore would be fully responsible for what the Board does. The President could then hold the Commission to account for its supervision of the Board, to the same extent that he may hold the Commission to account for everything else it does.

A second level of tenure protection changes the nature of the President's review. Now the Commission cannot remove a Board member at will. The President therefore cannot hold the Commission fully accountable for the Board's conduct, to the same extent that he may hold the Commission accountable for everything else that it does. The Commissioners are not responsible for the Board's actions. They are only responsible for their own determination of whether the Act's rigorous good-cause standard is met. And even if the President disagrees with their determination, he is powerless to intervene—unless that determination is so unreasonable as to constitute “inefficiency, neglect of duty, or malfeasance in office.”

This novel structure does not merely add to the Board's independence, but transforms it. Neither the President, nor anyone directly responsible to him, nor even an officer whose conduct he may review only for good cause, has full control over the Board. The President is stripped of the power our precedents have preserved, and his ability to execute the laws--by holding his subordinates accountable for their conduct--is impaired.

That arrangement is contrary to Article II's vesting of the executive power in the President. Without the ability to oversee the Board, or to attribute the Board's failings to those whom he can oversee, the President is no longer the judge of the Board's conduct. He is not the one who decides whether Board members are abusing their offices or neglecting their duties. He can neither ensure that the laws are faithfully executed, nor be held responsible for a Board member's breach of faith. This violates the basic principle that the President “cannot delegate ultimate responsibility or the active obligation to supervise that goes with it,” because Article II “makes a single President responsible for the actions of the Executive Branch.” *Clinton v. Jones*, 520 U.S. 681, 712-713 (1997). Indeed, if allowed to stand, this dispersion of responsibility could be multiplied. If Congress can shelter the bureaucracy behind two layers of good-cause tenure, why not a third? At oral argument, the Government was unwilling to concede that even five layers between the President and the Board would be too many. The officers of such an agency--safely encased within a Matryoshka doll of tenure protections--would be immune from Presidential oversight, even as they exercised power in the people's name....The President can always choose to restrain himself in his dealings with subordinates. He cannot, however, choose to bind his successors by diminishing their powers, nor can he escape responsibility for his choices by pretending that they are not his own.

The diffusion of power carries with it a diffusion of accountability. The people do not vote for the “Officers of the United States.” They instead look to the President to guide the “assistants or deputies . . . subject to his superintendence.” The Federalist No. 72, p. 487 (J. Cooke ed.1961) (A. Hamilton). Without a clear and effective chain of command, the public cannot “determine on whom the blame or the punishment of a pernicious

measure, or series of pernicious measures ought really to fall.” *Id.* That is why the Framers sought to ensure that “those who are employed in the execution of the law will be in their proper situation, and the chain of dependence be preserved; the lowest officers, the middle grade, and the highest, will depend, as they ought, on the President, and the President on the community.” 1 *Annals of Cong.*, at 499 (J. Madison).

By granting the Board executive power without the Executive’s oversight, this Act subverts the President’s ability to ensure that the laws are faithfully executed—as well as the public’s ability to pass judgment on his efforts. The Act’s restrictions are incompatible with the Constitution’s separation of powers.

561 U.S. at 495-498.

The Court went on to hold that, once PCAOB members were stripped of statutory tenure protection, they were—by virtue of the SEC’s control over their decision making—inferior officers whom the Constitution allows to be appointed by the head of a department. In response to the argument that the SEC is not a “department,” the Court explained: “Because the Commission is a freestanding component of the Executive Branch, not subordinate to or contained within any other such component, it constitutes a ‘Departmen[t]’ for the purposes of the Appointments Clause.” *Id.* at 511. It further rejected the argument that only the SEC chair could be the SEC’s head: “The Commission’s powers are generally vested in the Commissioners jointly, not the Chairman alone....As a constitutional matter, we see no reason why a multimember body may not be the ‘Hea[d]’ of a ‘Departmen[t]’ that it governs.” *Id.* at 512.

Justice Breyer wrote a vigorous dissent, asserting that removal protection for the PCAOB did not undermine presidential power, but that “the Court’s contrary holding threatens to disrupt severely the fair and efficient administration of the laws.” *Id.* at 514. Starting with the recognition that the Constitution says nothing about removal other than through impeachment, Breyer wrote: “When previously deciding this kind of nontextual question, the Court has emphasized the importance of examining how a particular provision, taken in context, is likely to function.” *Id.* at 519. In practice, he asserted, presidents exercise significant influence over the operation of agencies whether or not structured to be “independent.” The majority, he wrote, also overstated the significance of removal authority as a lever for such influence: “[N]otwithstanding the majority’s assertion that the removal authority is ‘the key’ mechanism by which the President oversees inferior officers in the independent agencies, it appears that no President has ever actually sought to exercise that power by testing the scope of a ‘for cause’ provision.” *Id.* at 524. (Breyer’s observation remained accurate until the second Trump Administration.)

Breyer also argued that eliminating the PCAOB’s independence, but not the SEC’s would still not insure presidential control over the PCAOB:

[S]o long as the President is legitimately foreclosed from removing the Commissioners except for cause (as the majority assumes), nullifying the Commission’s power to remove Board members only for cause will not resolve the problem the Court has identified: The President will still be ‘powerless to intervene’ by removing the Board members if the Commission reasonably decides not to do so.”

Id. at 525. On the other hand, “Congress and the President had good reason for enacting the challenged ‘for cause’ provision,” given that the PCAOB adjudicates cases and its “members supervise, and are themselves, technical professional experts.” *Id.* at 530-531.

Finally, Breyer criticized the uncertainty created by the majority opinion with regard to a host of other administrative processes in which inferior officers appointed by independent principal officers are themselves the beneficiaries of statutory tenure protection:

The Court suggests, for example, that its rule may not apply where an inferior officer “perform[s] adjudicative . . . functions.” But the Accounting Board performs adjudicative functions. What, then, are we to make of the Court’s potential exception? And would such an exception apply to an administrative law judge who also has important administrative duties beyond pure adjudication? . . .

I see no way to avoid sweeping hundreds, perhaps thousands of high level government officials within the scope of the Court’s holding, putting their job security and their administrative actions and decisions constitutionally at risk. . . .

And what about the military? Commissioned military officers “are ‘inferior officers.’” “There are over 210,000 active-duty commissioned officers currently serving in the armed forces. Numerous statutory provisions provide that such officers may not be removed from office except for cause (at least in peacetime). And such officers can generally be so removed only by other commissioned officers, who themselves enjoy the same career protections. The majority might simply say that the military is different. But it will have to explain how it is different. It is difficult to see why the Constitution would provide a President who is the military’s “commander-in-chief,” Art. II, § 2, cl. 1, with less authority to remove “inferior” military “officers” than to remove comparable civil officials. *Id.* at 535-543.

The plaintiffs had hoped to dismantle the powers of the PCAOB entirely, or even to obtain an overruling of *Morrison*. Despite executive-friendly rhetoric, however, the Court’s holding just made the Board members subject to removal by the SEC, without otherwise affecting its regulatory powers. By itself, this outcome had little practical importance. The significance of the decision lay in its implications for other, apparently similar arrangements, as the Justices debated at length.

2. *Seila Law v. CFPB*. Although *Free Enterprise Fund* did not purport to limit the reach of *Humphrey’s Executor*, its reliance on *Myers* and the Decision of 1789 underscored a newly resuscitated emphasis on the supposed importance of removal power to protect the President’s supervisory authority over the entire executive branch. The underlying principles of *Humphrey’s Executor* were less easily sidestepped a decade later in *Seila Law LLC v. Consumer Financial Protection Bureau*, 591 U.S. 197 (2020), which, like *Humphrey’s Executor*, involved the President’s constitutional supervision of principal officers.

Congress had created the Consumer Financial Protection Bureau (CFPB) in 2010 as an independent financial regulator within the Federal Reserve System, charged with “implement[ing]” and “enforc[ing]” a large body of financial consumer protection laws to “ensur[e] that all consumers have access to markets for consumer financial products and services and that markets for consumer financial products and services are fair, transparent, and competitive.” Dodd-Frank Wall Street Reform and Consumer Protection Act (Dodd-Frank), 124 Stat. 1376. To fulfill the agency’s mission, Congress gave the CFPB extensive rulemaking, enforcement, and adjudication powers. Rather than make the CFPB a multimember commission, however, Congress put it under the direction of a single director, who could be removed by the President only for “inefficiency, neglect of duty, or malfeasance in office.” 12 U.S.C. §§ 5491(c) (1), (3). It further strengthened the independence of the director by giving the office a five-year term and funding independent of Congress’s annual budget process.

Seila Law LLC is a California-based law firm. In 2017, the CFPB issued a civil investigative demand to *Seila Law* to determine whether the firm had “engag[ed] in unlawful acts or practices in the advertising, marketing, or sale of debt relief services.” The firm refused to

comply with the demand, objecting that the agency's leadership by a single director removable only for cause violated the separation of powers.

In another 5-4 opinion authored by Chief Justice Roberts, the Court upheld the firm's constitutional challenge, holding that Article II barred Congress from limiting the President's removal power over a principal officer in charge of a single-headed agency wielding "significant executive power." Rather than limiting *Myers* to its facts and as standing for a relatively discrete non-aggrandizement principle, the majority treated *Myers* as establishing the presumptive rule in favor of presidential removal power. *Free Enterprise Fund*, in its view:

left in place two exceptions to the President's unrestricted removal power. First, in *Humphrey's Executor*, decided less than a decade after *Myers*, the Court upheld a statute that protected the Commissioners of the FTC from removal except for "inefficiency, neglect of duty, or malfeasance in office." . . .

We have recognized a second exception for inferior officers in two cases, *United States v. Perkins* and *Morrison v. Olson*. [I]n *Morrison*, we upheld a provision granting good-cause tenure protection to an independent counsel appointed to investigate and prosecute particular alleged crimes by high-ranking Government officials. Backing away from the reliance in *Humphrey's Executor* on the concepts of "quasi-legislative" and "quasi-judicial" power, we viewed the ultimate question as whether a removal restriction is of "such a nature that [it] impede[s] the President's ability to perform his constitutional duty." Although the independent counsel was a single person and performed "law enforcement functions that typically have been undertaken by officials within the Executive Branch," we concluded that the removal protections did not unduly interfere with the functioning of the Executive Branch because "the independent counsel [was] an inferior officer under the Appointments Clause, with limited jurisdiction and tenure and lacking policymaking or significant administrative authority."

These two exceptions—one for multimember expert agencies that do not wield substantial executive power, and one for inferior officers with limited duties and no policymaking or administrative authority—"represent what up to now have been the outermost constitutional limits of permissible congressional restrictions on the President's removal power."

The Court proceeded to find that the CFPB fell within neither of these exceptions. Unlike the FTC, at least as described in *Humphrey's Executor*, it did not operate primarily as a mere legislative or judicial aid but could instead pursue significant monetary penalties in court against private parties, which the Court labeled "a quintessentially executive power." Nor was the CFPB an inferior officer protectible under *Morrison*.

In the majority's view, a significant indicator of the CFPB's constitutional infirmity was its novelty. Except for the Comptroller of the Currency, who enjoyed removal protection for one year during the Civil War, there exist only three other single-headed independent agencies, all of recent vintage: the Office of Special Counsel, which enforces certain rules governing Federal Government employers and employees; the Social Security Administration; and the Federal Housing Finance Agency. Because none of the three involves "regulatory or enforcement authority remotely comparable to that exercised by the CFPB," the Court concluded that the CFPB's single-Director structure is "an innovation with no foothold in history or tradition."

Roberts then explained why the majority concluded that:

the CFPB's single-Director configuration is incompatible with our constitutional structure. Aside from the sole exception of the Presidency, that structure scrupulously avoids

concentrating power in the hands of any single individual. * * *The Framers viewed the legislative power as a special threat to individual liberty, so they divided that power to ensure that “differences of opinion” and the “jarrings of parties” would “promote deliberation and circumspection” and “check excesses in the majority.” See *The Federalist* No. 70, at 475 (A. Hamilton). By contrast, the Framers thought it necessary to secure the authority of the Executive so that he could carry out his unique responsibilities. As Madison put it, while “the weight of the legislative authority requires that it should be . . . divided, the weakness of the executive may require, on the other hand, that it should be fortified.” *Id.*, No. 51, at 350.

The Framers deemed an energetic executive essential to “the protection of the community against foreign attacks,” “the steady administration of the laws,” “the protection of property,” and “the security of liberty.” *Id.*, No. 70, at 471. Accordingly, they chose not to bog the Executive down with the “habitual feebleness and dilatoriness” that comes with a “diversity of views and opinions.” *Id.*, at 476. Instead, they gave the Executive the “[d]ecision, activity, secrecy, and dispatch” that “characterise the proceedings of one man.”

To justify and check *that* authority—unique in our constitutional structure—the Framers made the President the most democratic and politically accountable official in Government. Only the President (along with the Vice President) is elected by the entire Nation. And the President’s political accountability is enhanced by the solitary nature of the Executive Branch, which provides “a single object for the jealousy and watchfulness of the people.” *Id.*, at 479. The President “cannot delegate ultimate responsibility or the active obligation to supervise that goes with it,” because Article II “makes a single President responsible for the actions of the Executive Branch.” *Free Enterprise Fund*, 561 U.S., at 496–497 (quoting (1997) (BREYER, J., concurring in judgment)).

The resulting constitutional strategy is straightforward: divide power everywhere except for the Presidency, and render the President directly accountable to the people through regular elections. In that scheme, individual executive officials will still wield significant authority, but that authority remains subject to the ongoing supervision and control of the elected President. Through the President’s oversight, “the chain of dependence [is] preserved,” so that “the lowest officers, the middle grade, and the highest” all “depend, as they ought, on the President, and the President on the community.” 1 *Annals of Cong.* 499 (J. Madison).

The CFPB’s single-Director structure contravenes this carefully calibrated system by vesting significant governmental power in the hands of a single individual accountable to no one. The Director is neither elected by the people nor meaningfully controlled (through the threat of removal) by someone who is. . . . Yet the Director may unilaterally, without meaningful supervision, issue final regulations, oversee adjudications, set enforcement priorities, initiate prosecutions, and determine what penalties to impose on private parties. With no colleagues to persuade, and no boss or electorate looking over her shoulder, the Director may dictate and enforce policy for a vital segment of the economy affecting millions of Americans.

591 U.S. at .

The majority insisted its view was supported by “text, first principles, the First Congress’s decision in 1789, *Myers*, and *Free Enterprise Fund*,” but purported to “not revisit *Humphrey’s Executor* or any other precedent today.” The Court also specifically declined to uphold the

statutory limit on at-will removability by interpreting the statutory grounds for removal as encompassing a refusal to follow at least some varieties of presidential directive.

Finally, Justices Alito, and Kennedy joined Chief Justice Roberts in declining to void the CFPB provisions of the Dodd-Frank Act altogether as a result of the unconstitutional infirmity in limiting presidential removal authority. The Act, they noted, contained a severability clause, and the Court concluded that “Congress would have preferred a dependent CFPB to no agency at all.” Intriguingly, the Roberts opinion added: “Our severability analysis does not foreclose Congress from pursuing alternative responses to the problem—for example, converting the CFPB into a multimember agency.” *Id.* at 237.

Justices Thomas concurred separately (along with Justice Gorsuch), arguing that the Court should have overruled *Humphrey’s Executor* entirely. They also disagreed with the decision to sever the disapproved removal limitation from the rest of Dodd-Frank.

Justice Kagan wrote an opinion for herself and Justices Ginsberg, Breyer, and Sotomayor, agreeing with Roberts on severability, but dissenting from the majority’s constitutional analysis:

The text of the Constitution allows . . . for-cause removal limits. Nothing in it speaks of removal. And it grants Congress authority to organize all the institutions of American governance, provided only that those arrangements allow the President to perform his own constitutionally assigned duties. Still more, the Framers’ choice to give the political branches wide discretion over administrative offices has played out through American history in ways that have settled the constitutional meaning. From the first, Congress debated and enacted measures to create spheres of administration—especially of financial affairs—detached from direct presidential control. As the years passed, and governance became ever more complicated, Congress continued to adopt and adapt such measures—confident it had latitude to do so under a Constitution meant to “endure for ages to come.” *McCulloch v. Maryland*, 4 Wheat. 316, 415 (1819) (approving the Second Bank of the United States). Not every innovation in governance—not every experiment in administrative independence—has proved successful. And debates about the prudence of limiting the President’s control over regulatory agencies, including through his removal power, have never abated. But the Constitution—both as originally drafted and as practiced—mostly leaves disagreements about administrative structure to Congress and the President, who have the knowledge and experience needed to address them. Within broad bounds, it keeps the courts—who do not—out of the picture.

The Court today fails to respect its proper role. It recognizes that this Court has approved limits on the President’s removal power over heads of agencies much like the CFPB. Agencies possessing similar powers, agencies charged with similar missions, agencies created for similar reasons. The majority’s explanation is that the heads of those agencies fall within an “exception”—one for multimember bodies and another for inferior officers—to a “general rule” of unrestricted presidential removal power. And the majority says the CFPB Director does not. That account, though, is wrong in every respect. The majority’s general rule does not exist. Its exceptions, likewise, are made up for the occasion—gerrymandered so the CFPB falls outside them. And the distinction doing most of the majority’s work—between multimember bodies and single directors—does not respond to the constitutional values at stake. If a removal provision violates the separation of powers, it is because the measure so deprives the President of control over an official as to impede his own constitutional functions. But with or without a for-cause removal provision, the President has at least as much control over an individual as over a commission—and possibly more. That means the constitutional

concern is, if anything, ameliorated when the agency has a single head. Unwittingly, the majority shows why courts should stay their hand in these matters. “Compared to Congress and the President, the Judiciary possesses an inferior understanding of the realities of administration” and the way “political power[] operates.” *Free Enterprise Fund v. Public Company Accounting Oversight Bd.*, 561 U.S. 477, 523 (2010) (BREYER, J., dissenting).

In second-guessing the political branches, the majority second-guesses as well the wisdom of the Framers and the judgment of history. It writes in rules to the Constitution that the drafters knew well enough not to put there. It repudiates the lessons of American experience, from the 18th century to the present day. And it commits the Nation to a static version of governance, incapable of responding to new conditions and challenges. Congress and the President established the CFPB to address financial practices that had brought on a devastating recession, and could do so again. Today’s decision wipes out a feature of that agency its creators thought fundamental to its mission—a measure of independence from political pressure. I respectfully dissent. * * *

I

The text of the Constitution, the history of the country, the precedents of this Court, and the need for sound and adaptable governance—all stand against the majority’s opinion. They point not to the majority’s “general rule” of “unrestricted removal power” with two grudgingly applied “exceptions.” Ante, at 2197 – 2198, 2199 – 2200. Rather, they bestow discretion on the legislature to structure administrative institutions as the times demand, so long as the President retains the ability to carry out his constitutional duties. And most relevant here, they give Congress wide leeway to limit the President’s removal power in the interest of enhancing independence from politics in regulatory bodies like the CFPB.

A

What does the Constitution say about the separation of powers—and particularly about the President’s removal authority? (Spoiler alert: about the latter, nothing at all.)

The majority offers the civics class version of separation of powers—call it the Schoolhouse Rock definition of the phrase. See *Schoolhouse Rock! Three Ring Government* (Mar. 13, 1979), <http://www.youtube.com/watch?v=pKSGyiT-o3o> (“Ring one, Executive. Two is Legislative, that’s Congress. Ring three, Judiciary”). . . .

There is nothing wrong with that as a beginning (except the adjective “simple”). It is of course true that the Framers lodged three different kinds of power in three different entities. And that they did so for a crucial purpose—because, as James Madison wrote, “there can be no liberty where the legislative and executive powers are united in the same person[] or body” or where “the power of judging [is] not separated from the legislative and executive powers.” *The Federalist* No. 47, p. 325 (J. Cooke ed. 1961) (quoting Baron de Montesquieu).

The problem lies in treating the beginning as an ending too—in failing to recognize that the separation of powers is, by design, neither rigid nor complete. Blackstone, whose work influenced the Framers on this subject as on others, observed that “every branch” of government “supports and is supported, regulates and is regulated, by the rest.” 1 W. Blackstone, *Commentaries on the Laws of England* 151 (1765). So as James Madison stated, the creation of distinct branches “did not mean that these departments ought to have no partial agency in, or no controul over the acts of each other.” *The Federalist* No. 47, at 325 (emphasis deleted). To the contrary, Madison explained, the drafters of the Constitution—like those of then-existing state constitutions—opted against keeping the branches of government “absolutely separate and distinct.” Or as Justice Story reiterated a half-century later: “[W]hen

we speak of a separation of the three great departments of government,” it is “not meant to affirm, that they must be kept wholly and entirely separate.” 2 J. Story, Commentaries on the Constitution of the United States § 524, p. 8 (1833). Instead, the branches have—as they must for the whole arrangement to work—“common link[s] of connexion [and] dependence.”

One way the Constitution reflects that vision is by giving Congress broad authority to establish and organize the Executive Branch. Article II presumes the existence of “Officer[s]” in “executive Departments.” § 2, cl. 1. But it does not, as you might think from reading the majority opinion, give the President authority to decide what kinds of officers—in what departments, with what responsibilities—the Executive Branch requires. Instead, Article I’s Necessary and Proper Clause puts those decisions in the legislature’s hands. Congress has the power “[t]o make all Laws which shall be necessary and proper for carrying into Execution” not just its own enumerated powers but also “all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.” § 8, cl. 18. Similarly, the Appointments Clause reflects Congress’s central role in structuring the Executive Branch. Yes, the President can appoint principal officers, but only as the legislature “shall . . . establish[] by Law” (and of course subject to the Senate’s advice and consent). Art. II, § 2, cl. 2. And Congress has plenary power to decide not only what inferior officers will exist but also who (the President or a head of department) will appoint them. So as Madison told the first Congress, the legislature gets to “create[] the office, define[] the powers, [and] limit[] its duration.” 1 Annals of Cong. 582 (1789). The President, as to the construction of his own branch of government, can only try to work his will through the legislative process.

The majority relies for its contrary vision on Article II’s Vesting Clause, but the provision can’t carry all that weight. Or as Chief Justice Rehnquist wrote of a similar claim in *Morrison v. Olson*, “extrapolat[ing]” an unrestricted removal power from such “general constitutional language”—which says only that “[t]he executive Power shall be vested in a President”—is “more than the text will bear.” Dean John Manning has well explained why, even were it not obvious from the Clause’s “open-ended language.” Separation of Powers as Ordinary Interpretation, 124 Harv. L. Rev. 1939, 1971 (2011). The Necessary and Proper Clause, he writes, makes it impossible to “establish a constitutional violation simply by showing that Congress has constrained the way ‘[t]he executive Power’ is implemented”; that is exactly what the Clause gives Congress the power to do. *Id.*, at 1967. Only “a specific historical understanding” can bar Congress from enacting a given constraint. *Id.*, at 2024. And nothing of that sort broadly prevents Congress from limiting the President’s removal power. I’ll turn soon to the Decision of 1789 and other evidence of Post-Convention thought. For now, note two points about practice before the Constitution’s drafting. First, in that era, Parliament often restricted the King’s power to remove royal officers—and the President, needless to say, wasn’t supposed to be a king. See Birk, Interrogating the Historical Basis for a Unitary Executive, 73 Stan. L. Rev. (forthcoming 2021). Second, many States at the time allowed limits on gubernatorial removal power even though their constitutions had similar vesting clauses. See Shane, The Originalist Myth of the Unitary Executive, 19 U. Pa. J. Const. L. 323, 334–344 (2016). Historical understandings thus belie the majority’s “general rule.”

Nor can the Take Care Clause come to the majority’s rescue. That Clause cannot properly serve as a “placeholder for broad judicial judgments” about presidential control. Goldsmith & Manning, The Protean Take Care Clause, 164 U. Pa. L. Rev. 1835, 1867 (2016). To begin with, the provision—“he shall take Care that the Laws be faithfully executed”—speaks of duty, not power. Art. II, § 3. New scholarship suggests the language came from English and

colonial oaths taken by, and placing fiduciary obligations on, all manner and rank of executive officers. See Kent, Leib, & Shugerman, *Faithful Execution and Article II*, 132 Harv. L. Rev. 2111, 2121–2178 (2019). To be sure, the imposition of a duty may imply a grant of power sufficient to carry it out. But again, the majority's view of that power ill comports with founding-era practice, in which removal limits were common. See, e.g., Corwin, *Tenure of Office and the Removal Power Under the Constitution*, 27 Colum. L. Rev. 353, 385 (1927) (noting that New York's Constitution of 1777 had nearly the same clause, though the State's executive had “very little voice” in removals). And yet more important, the text of the Take Care Clause requires only enough authority to make sure “the laws [are] faithfully executed”—meaning with fidelity to the law itself, not to every presidential policy preference. As this Court has held, a President can ensure “ ‘faithful execution’ of the laws”—thereby satisfying his “take care” obligation—with a removal provision like the one here. A for-cause standard gives him “ample authority to assure that [an official] is competently performing [his] statutory responsibilities in a manner that comports with the [relevant legislation's] provisions.”

Finally, recall the Constitution's telltale silence: Nowhere does the text say anything about the President's power to remove subordinate officials at will. . . .

B

History no better serves the majority's cause. . . . The early history—including the fabled Decision of 1789—shows mostly debate and division about removal authority. And when a “settle[ment of] meaning” at last occurred, it was not on the majority's terms. Instead, it supports wide latitude for Congress to create spheres of administrative independence. . . .

The best view is that the First Congress was “deeply divided” on the President's removal power, and “never squarely addressed” the central issue here. Prakash, *New Light on the Decision of 1789*, 91 Cornell L. Rev. 1021, 1072 (2006). The congressional debates revealed three main positions. See Corwin, 27 Colum. L. Rev., at 361. Some shared Hamilton's *Federalist* No. 77 view: The Constitution required Senate consent for removal. At the opposite extreme, others claimed that the Constitution gave absolute removal power to the President. And a third faction maintained that the Constitution placed Congress in the driver's seat: The legislature could regulate, if it so chose, the President's authority to remove. In the end, Congress passed a bill saying nothing about removal, leaving the President free to fire the Secretary of Foreign Affairs at will. But the only one of the three views definitively rejected was Hamilton's theory of necessary Senate consent. As even strong proponents of executive power have shown, Congress never “endorse[d] the view that [it] lacked authority to modify” the President's removal authority when it wished to. Prakash, *supra*, at 1073; see Manning, *supra*, at 1965, n. 135, 2030–2031. The summer of 1789 thus ended without resolution of the critical question: Was the removal power “beyond the reach of congressional regulation?” Prakash, *supra*, at 1072. . . .

Contrary to the majority's view, then, the founding era closed without any agreement that Congress lacked the power to curb the President's removal authority. And as it kept that question open, Congress took the first steps—which would launch a tradition—of distinguishing financial regulators from diplomatic and military officers. The latter mainly helped the President carry out his own constitutional duties in foreign relations and war. The former chiefly carried out statutory duties, fulfilling functions Congress had assigned to their offices. In addressing the new Nation's finances, Congress had begun to use its powers under

the Necessary and Proper Clause to design effective administrative institutions. And that included taking steps to insulate certain officers from political influence. . . .

The majority grounds its new approach in *Myers*, ignoring the way this Court has cabined that decision. *Myers*, the majority tells us, found an unrestrained removal power “essential to the [President’s] execution of the laws.” What the majority does not say is that within a decade the Court abandoned that view. In *Humphrey’s Executor* the Court unceremoniously—and unanimously—confined *Myers* to its facts. “[T]he narrow point actually decided” there, *Humphrey’s* stated, was that the President could “remove a postmaster of the first class, without the advice and consent of the Senate.” Nothing else in Chief Justice Taft’s prolix opinion “c[a]me within the rule of stare decisis.” (Indeed, the Court went on, everything in *Myers* “out of harmony” with *Humphrey’s* was expressly “disapproved.” 295 U.S., at 626.) . . .

Morrison both extended *Humphrey’s* domain and clarified the standard for addressing removal issues. The *Morrison* Court, over a one-Justice dissent, upheld for-cause protections afforded to an independent counsel with power to investigate and prosecute crimes committed by high-ranking officials. . . . An official’s functions, *Morrison* held, were relevant to but not dispositive of a removal limit’s constitutionality. The key question in all the cases, *Morrison* saw, was whether such a restriction would “impede the President’s ability to perform his constitutional duty.” 487 U.S., at 691. Only if it did so would it fall outside Congress’s power.

So caselaw joins text and history in establishing the general permissibility of for-cause provisions giving some independence to agencies. Contrary to the majority’s view, those laws do not represent a suspicious departure from illimitable presidential control over administration. For almost a century, this Court has made clear that Congress has broad discretion to enact for-cause protections in pursuit of good governance. . . .

II

B

. . . Congress’s choice to put a single director, rather than a multimember commission, at the CFPB’s head violates no principle of separation of powers. The purported constitutional problem here is that an official has “slip[ped] from the Executive’s control” and “supervision”—that he has become unaccountable to the President (internal quotation marks omitted). So to make sense on the majority’s own terms, the distinction between singular and plural agency heads must rest on a theory about why the former more easily “slip” from the President’s grasp. But the majority has nothing to offer. In fact, the opposite is more likely to be true: To the extent that such matters are measurable, individuals are easier than groups to supervise. . . .

The majority says a single head is the greater threat because he may wield power “unilaterally” and “[w]ith no colleagues to persuade.” So the CFPB falls victim to what the majority sees as a constitutional anti-power-concentration principle (with an exception for the President). * * * If you’ve never heard of a statute being struck down on that ground, you’re not alone. It is bad enough to “extrapolat[e]” from the “general constitutional language” of Article II’s Vesting Clause an unrestricted removal power constraining Congress’s ability to legislate under the Necessary and Proper Clause. It is still worse to extrapolate from the Constitution’s general structure (division of powers) and implicit values (liberty) a limit on Congress’s express power to create administrative bodies. And more: to extrapolate from such sources a distinction as prosaic as that between the SEC and the CFPB—i.e., between a multi-headed and single-headed agency. That is, to adapt a phrase (or two) from our precedent,

“more than” the emanations of “the text will bear.” *Morrison*, 487 U.S., at 690, n. 29. By using abstract separation-of-powers arguments for such purposes, the Court “appropriate[s]” the “power delegated to Congress by the Necessary and Proper Clause” to compose the government. Manning, Foreword: The Means of Constitutional Power, 128 Harv. L. Rev. 1, 78 (2014). In deciding for itself what is “proper,” the Court goes beyond its own proper bounds.

. . . The Constitution does not distinguish between single-director and multimember independent agencies. It instructs Congress, not this Court, to decide on agency design. Because this Court ignores that sensible—indeed, that obvious—division of tasks, I respectfully dissent.

The majority’s response to Kagan was essentially dismissive: “If these arguments sound familiar, it’s because they are. They were raised by the dissent in *Free Enterprise Fund*. The answers to these repeated concerns (beyond those we have already covered) are the same today as they were ten years ago.” *Id.* at 231.

3. ***Collins v. Yellen***. Although *Seila Law* appeared to repudiate much of the conceptual underpinning of *Humphrey’s Executor*, the plurality’s refusal to overturn the earlier case, its suggestion that Congress might convert the CFPB into a multimember agency, and the majority’s references to agencies that wield “significant executive power” raised obvious questions about how far the Court would expand upon *Seila Law*. That question soon arose with regard to one of the three other single-headed agencies that were arguably precedents, the Federal Housing Finance Agency (FHFA). *Collins v. Yellen*, 594 U.S. 220 (2021), held that for-cause removal protection for the director of the FHFA was unconstitutional under the reasoning of *Seila Law*. Congress created the FHFA as an independent agency to oversee Fannie Mae and Freddie Mac, two of the nation’s largest sources of mortgage financing:

Under those agreements, Treasury committed to providing each company with up to \$100 billion in capital, and in exchange received, among other things, senior preferred shares and quarterly fixed-rate dividends. Four years later, the FHFA and Treasury amended the agreements and replaced the fixed-rate dividend formula with a variable one that required the companies to make quarterly payments consisting of their entire net worth minus a small specified capital reserve. This deal, * * * caused the companies to transfer enormous amounts of wealth to Treasury. It also resulted in a slew of lawsuits, including the one before us today.

A group of Fannie Mae’s and Freddie Mac’s shareholders challenged the third amendment on statutory and constitutional grounds. With respect to their statutory claim, the shareholders contended that the Agency exceeded its authority as a conservator under the Recovery Act when it agreed to a variable dividend formula that would transfer nearly all of the companies’ net worth to the Federal Government. With respect to their statutory claim, the shareholders contended that the Agency exceeded its authority as a conservator under the Recovery Act when it agreed to a variable dividend formula that would transfer nearly all of the companies’ net worth to the Federal Government. And with respect to their constitutional claim, the shareholders argued that the FHFA’s structure violates the separation of powers because the Agency is led by a single Director who may be removed by the President only “for cause.”

The Court was unanimous in rejecting the shareholder’s statutory claims. Resolution of the constitutional claim was complicated because the agreements at issue were initiated by an Acting Director of the agency, and the Court found, as a matter of statutory interpretation, that an Acting

FHFA Director was subject to removal at-will. Because the agreements continued to be implemented, however, by duly appointed and tenure-protected permanent directors, the Court held that the unconstitutional limit on their removability was legitimately at issue. The Court remanded to the lower courts for a decision on appropriate relief.

The most significant apparent doctrinal wrinkle in the majority opinion on constitutionality came as the Court declined to distinguish *Seila Law* from the present case on the ground that the CFPB was more significantly “executive” than the FHFA. Justice Alito, writing for all the Justices in the *Seila Law* majority plus Justice Barrett, who had succeeded Justice Ginsburg, appeared to discard what might have been seen as a limit to the reach of the *Seila Law* holding:

[T]he nature and breadth of an agency’s authority is not dispositive in determining whether Congress may limit the President’s power to remove its head. The President’s removal power serves vital purposes even when the officer subject to removal is not the head of one of the largest and most powerful agencies. The removal power helps the President maintain a degree of control over the subordinates he needs to carry out his duties as the head of the Executive Branch, and it works to ensure that these subordinates serve the people effectively and in accordance with the policies that the people presumably elected the President to promote. In addition, because the President, unlike agency officials, is elected, this control is essential to subject Executive Branch actions to a degree of electoral accountability. At-will removal ensures that “the lowest officers, the middle grade, and the highest, will depend, as they ought, on the President, and the President on the community.” These purposes are implicated whenever an agency does important work, and nothing about the size or role of the FHFA convinces us that its Director should be treated differently from the Director of the CFPB.

Justices Sotomayor and Breyer dissented from the constitutional holding and would have found the FHFA distinguishable: “[T]he FHFA does not wield significant executive power, the executive power it does wield is exercised over Government affiliates, and its independence is supported by [a] historical tradition [of independent financial regulators].” Justice Kagan agreed that *Seila Law* controlled the outcome, but disagreed with the majority’s apparent extension of the *Seila Law* doctrine.

In reaction to the Court’s decision *Collins v. Yellen*, President Joseph Biden, less than three weeks later, fired Social Security Commissioner Andrew Saul, a holdover from the first administration of Donald J. Trump. Democrats objected to Commissioner Saul’s hostility to federal employee unions and his administration of the SSA’s disability benefits program. Congress had changed the Social Security Administration in 1994 from an agency within the Department of Health and Human Services run by a board of three commissioners to a freestanding independent body headed by a single commissioner. Under the Social Security Independence and Program Improvements Act of 1994, Pub. L. No. 103–296, sec. 102, § 702(a)(3), 108 Stat. 1464, the SSA Commissioner was to be “appointed for a term of 6 years,” could “continue in office until the entry upon office of . . . a successor,” and could “be removed from office only pursuant to a “finding by the President of neglect of duty or malfeasance in office.” The Clinton Administration’s Justice Department had noted that, in its judgment, the removal limitation raised a significant separation of powers issue, but President Clinton had not stated a view that the provision was unconstitutional. In light of *Collins v. Yellen*, however, OLC advised the White House “that, notwithstanding the statutory limitation on removal, the President can remove the SSA Commissioner at will.” Office

of Legal Counsel, Memorandum Opinion for the Deputy Counsel to the President, Constitutionality of the Commissioner of Social Security's Tenure Protection (July 8, 2021). Had he not been discharged, Commissioner Saul would have been entitled to serve at least until 2025.

4. *Trump v. Wilcox*. Donald Trump's 2024 election victory brought to the White House a President eager to test whether the Court would finally overturn *Humphrey's Executor* altogether. Ignoring the provisions of various statutes insulating various administrators from at-will removal, Trump almost immediately fired without cause Cathy Harris, chair of the independent Merit Systems Protection Board, and Gwynne Wilcox, a member of the independent National Labor Relations Board (NLRB). Harris and Wilcox succeeded at the district court level in challenging their removal, but the Trump Administration successfully filed an emergency application in the Supreme Court to block their reinstatement until such time as their cases make their way to the Supreme Court for ultimate resolution. In granting the government's application over the dissent of the Court's three liberal Justices, the Court clearly indicated that *Humphrey's Executor* hung by a thread:

The Government has applied for a stay of orders from the District Court for the District of Columbia enjoining the President's removal of a member of the National Labor Relations Board (NLRB) and a member of the Merit Systems Protection Board (MSPB), respectively. The President is prohibited by statute from removing these officers except for cause, and no qualifying cause was given. See 29 U. S. C. § 153(a); 5 U. S. C. § 1202(d).

The application for stay presented to THE CHIEF JUSTICE and by him referred to the Court is granted. Because the Constitution vests the executive power in the President, see Art. II, § 1, cl. 1, he may remove without cause executive officers who exercise that power on his behalf, subject to narrow exceptions recognized by our precedents, see *Seila Law LLC v. Consumer Financial Protection Bureau*, 591 U.S. 197, 215–218 (2020). The stay reflects our judgment that the Government is likely to show that both the NLRB and MSPB exercise considerable executive power. But we do not ultimately decide in this posture whether the NLRB or MSPB falls within such a recognized exception; that question is better left for resolution after full briefing and argument. The stay also reflects our judgment that the Government faces greater risk of harm from an order allowing a removed officer to continue exercising the executive power than a wrongfully removed officer faces from being unable to perform her statutory duty. A stay is appropriate to avoid the disruptive effect of the repeated removal and reinstatement of officers during the pendency of this litigation.

Trump v. Wilcox, 145 S. Ct. 1415 (2025).

The Court's apparent willingness to consider the extension of *Seila Law* to multimember agencies raised some considerable anxiety whether the Court might actually entertain the prospect of undoing the independent status of the Board of Governors of the Federal Reserve System, which many observers believed would threaten the stability of both domestic and global financial markets. Rather remarkably, the Court's unsigned statement addressed that anxiety, which, of course, was not at issue in the Wilcox and Harris challenges:

Finally, respondents Gwynne Wilcox and Cathy Harris contend that arguments in this case necessarily implicate the constitutionality of for-cause removal protections for members of the Federal Reserve's Board of Governors or other members of the Federal Open Market Committee. See Response of Wilcox in Opposition to App. for Stay 2–3, 27–28; Response of Harris in Opposition to App. for Stay 3, 5–6, 16–17, 36, 40. We disagree. The Federal Reserve is a uniquely structured, quasi-private entity that follows in

the distinct historical tradition of the First and Second Banks of the United States. See *Seila Law*, 591 U.S. at 222, n. 8, 140 S.Ct. 2183.

Id.

1Trump v. Slaughter

609 U.S. ---- (2026)

Chief Justice ROBERTS delivered the opinion of the Court.

Nearly 250 years ago, the Framers decided to vest “[t]he executive Power” in one person — “a President of the United States of America.” Art. II, § 1, cl. 1. The choice was not made lightly. Within living memory were the “long train of abuses and usurpations” of a King who reigned as “a Tyrant.” Declaration of Independence ¶¶2, 30. Indeed, several delegates to the Constitutional Convention pushed for a multimember council instead of “unity in the Executive magistracy,” which they feared would serve as “the foetus of monarchy.” 1 Records of the Federal Convention of 1787, p. 66 (M. Farrand ed. 1911) (Farrand’s Records) (E. Randolph). But unity won out. Our Constitution’s drafters knew from experience that a “plurality in the executive”—the model in use by most States at the time—not only “diminishe[s]” the “activity, secrecy, and dispatch” necessary to ensure “good government” but “tends to conceal faults and destroy responsibility.” The Federalist No. 70, pp. 423–424, 427 (C. Rossiter ed. 1961) (A. Hamilton). With just one President in charge, they reasoned, there would be no doubt “on whom the blame or the punishment of a pernicious measure ... ought really to fall.” *Id.*, at 428.

One hundred years ago, this Court honored the Convention’s choice in the seminal case of *Myers v. United States*, 272 U.S. 52 (1926). There, we held that the Constitution “grants to the President” the “general administrative control of those executing the laws, including the power of appointment and removal of executive officers.” *Id.*, at 163–164. Because no one could “execute the laws” “alone and unaided,” Chief Justice Taft explained for the Court, the President must be permitted to “select those who ... act for him” and “remov[e] those for whom he can not continue to be responsible.” *Id.*, at 117. “[T]o hold otherwise would make it impossible for the President” to fulfill his constitutional obligation “to take care that the laws be faithfully executed.” *Id.*, at 164.

Today we confront one of several regulatory agencies that deviate from this model of Presidential supervision—the Federal Trade Commission (FTC). Since its creation in 1914, the FTC has accumulated vast rulemaking, enforcement, and adjudicatory powers under more than 80 statutes. Not only does it promulgate rules that carry the force of law, but it also enforces those rules against private parties, collecting civil penalties in the billions of dollars. Its powers, however, do not belong to the President or his appointees alone; they instead belong to five Commissioners, each of whom serves for seven years and may be removed by the President only “for inefficiency, neglect of duty, or malfeasance in office.” 38 Stat. 718, 15 U.S.C. § 41.

We hold that such protection from removal is contrary to the separation of powers enshrined in the Constitution.

I

When President Trump began his second term in January 2025, the FTC was led by two Republicans and three Democrats. On his first day in office, he designated a new Chair, replacing President Biden’s pick. See 15 U.S.C. § 41 (permitting the President to choose a Chair “from the Commission’s membership”). As is customary, the former Chair, Lina Khan, resigned her seat a few weeks later, permitting President Trump to appoint a replacement (contingent, of course, on the Senate’s advice and consent). In the meantime, however, the FTC would be split down the middle.

That split came to an abrupt end in March, when President Trump fired the two remaining Democratic Commissioners, Rebecca Slaughter and Alvaro Bedoya. He did not assert that they were “inefficien[t],” “neglect[ed]” their “dut[ies],” or committed “malfeasance in office,” as the statute required. § 41. He instead told them that their “continued service on the FTC [was] inconsistent with [his] Administration’s priorities” and that they were removed from office “pursuant to [his] authority under Article II of the Constitution.”

Slaughter promptly filed suit against the President and other executive officials, seeking declaratory and injunctive relief to restore her to office.¹ She alleged that her removal was ultra vires, violated the Administrative Procedure Act, and violated the Constitution.

The District Court agreed, granting Slaughter’s motion for summary judgment. It acknowledged that *Myers* generally permits the President to remove “executive officers” at will, as part of his “general administrative control of those executing the laws.” But it considered itself bound by *Humphrey’s Executor v. United States*, 295 U.S. 602 (1935). That case, the District Court explained, carved out an exception to *Myers*’s general rule for the FTC, which the *Humphrey’s* Court described as a multimember “expert” agency that exercised solely “quasi-legislative” and “quasi-judicial” functions. The court declared the President’s “purported removal” ultra vires and issued a permanent injunction barring interference “with Ms. Slaughter’s right to perform her lawful duties.”

A divided Court of Appeals denied the Government’s motion for a stay pending appeal. The panel held that the Government has “no prospect of success on appeal,” as this very issue had been settled by *Humphrey’s Executor*. Judge Rao dissented, explaining that *Humphrey’s Executor* does not license a “headless fourth branch” of independent agencies exercising “considerable executive power.” 2025 WL 2551247, *13 (quoting *Trump v. Wilcox*, 605 U. S. —, —, 145 S.Ct. 1415, 1419 (2025)).

We stayed the District Court’s order and granted certiorari before judgment.

II

A

The Constitution vests “[t]he executive Power” in a “President of the United States of America” and instructs that he “take Care that the Laws be faithfully executed.” Art. II, §§ 1, 3. To vest “the whole executive power” in just one person was not to suggest that he could execute the laws alone and unaided. The Federalist No. 47, at 303 (J. Madison). But it was to establish a hierarchy—a “Chief Magistrate” with whom the buck stops, and below him various “assistants or deputies” who “derive their offices from his appointment” and remain “subject to his superintendence.” *Id.*, No. 72, at 436 (A. Hamilton). To remain accountable to the President, those officers must be removable by the President.

1

The idea that one President would be in charge was by no means a foregone conclusion in 1787. Just ten years earlier, the colonists had “thrown off the Yoke” of King George III and his colonial governors, 5 Papers of John Adams 26 (R. Taylor ed. 1983) (S. Adams), who had laid a “[f]oundation sufficient on which to erect a Tyranny,” J. Adams, *Diary and Autobiography of John Adams* 260 (L. Butterfield ed. 1961). Now citizens, they had no intention of reestablishing “the kingly office” by another name. 1 Papers of Thomas Jefferson 337 (J. Boyd ed. 1950). Thus the flurry of state constitutions that followed the Declaration of Independence “made of the

¹ Slaughter was initially joined in her lawsuit by Bedoya, who similarly sought to be restored to office. After litigation commenced, however, Bedoya formally resigned from his position on the FTC, and the District Court dismissed his claims as moot. Thus only Slaughter’s claims are at issue here.

gubernatorial magistrate a new kind of creature, a very pale reflection indeed of his regal ancestor.” G. Wood, *The Creation of the American Republic, 1776–1787*, p. 136 (1998) (Wood); see also J. Rakove, *Original Meanings* 250–252 (1996). Almost every State had but a nominal Governor, who could act only with his council's consent. These early chief executives were “little more than chairmen of their executive boards.”

The Framers chose to depart from this model, for they had seen its flaws up close. Common was the complaint that the States’ feeble and divided executives left no “effectual check” for “the instability & encroachments” of legislatures. See 2 *Farrand's Records* 35 (J. Madison). For “fear” of “monarchical ... power,” William Livingston lamented, the States “improvidently” devised executives “too weak & inefficacious to operate with proper energy & vigour.” 5 *Papers of William Livingston* 56–57 (C. Prince, M. Lustig, & D. Vorhees eds. 1988).

The Convention was determined not to make the same mistake. So when delegates objected to “unity in the Executive magistracy” as “the foetus of monarchy,” 1 *Farrand's Records* 66 (E. Randolph), others could soundly reply that the concern was quite backward. “[I]nstead of being the fetus of Monarchy,” they explained, “[u]nity in the Executive” was “the best safeguard against” it—for only a “single Person” could produce the “vigor and activity” necessary to preserve the Constitution's separation of powers, and only a “single Person” could make the office “responsibl[e]” to the people. *Id.*, at 66, 109 (J. Wilson). “Give him an able Council and it will thwart him; a weak one and he will shelter himself under their sanction.” 2 *id.*, at 329 (C. Pinckney). Any more than one person in charge, as James Wilson put it, “oftener serves to cover, than prevent malpractices.” 1 *id.*, at 97.

That the Constitution forged a new path was not hidden from those who ratified it. Hamilton frankly conceded that only two States thus far “have intrusted the executive authority wholly to single men,” *The Federalist* No. 70, at 424, anticipating Roger Sherman's critique of the Constitution that every other government has “a Council of advice, without which the first magistrate could not act,” 1 *Farrand's Records* 97. To Hamilton, however, that was the point. Unlike most States, the Federal Government would have “a vigorous executive” who could act with “secrecy . . . and dispatch”—and would not be able to “conceal [his] faults” behind a council. *The Federalist* No. 70, at 423–424, 427. “[A] plurality in the executive,” Hamilton argued, “tends to conceal faults and destroy responsibility.” *Id.*, at 427. “It often becomes impossible, amidst mutual accusations, to determine on whom the blame or the punishment of a pernicious measure, or series of pernicious measures, ought really to fall.” *Id.*, at 428. If the executive power were not placed in a “single hand,” then “the people” would be “deprive[d] . . . of the two greatest securities they can have for the faithful exercise of any delegated power”—“the restraints of public opinion” and the “opportunity of discovering with facility and clearness the misconduct of the persons they trust.” *Id.*, at 424, 428–429.

In opting for one President, however, the Framers did not opt for the President to work alone. They knew (as our first President would write) that it would be “impossib[le]” for just “one man . . . to perform all the great business of the State.” 30 *Writings of George Washington* 334 (J. Fitzpatrick ed. 1939). So they anticipated that Congress would “institut[e] the great Departments” and allow the President to “appoint[] officers therein, to assist [him] in discharging the duties of his trust.” *Ibid.* As James Wilson explained at the Convention, “there can be no good Executive without a responsible appointment of officers to execute.” 2 *Farrand's Records* 538–539.

These officers were to serve as envoys of the President, not his equals. Their very purpose, after all, was to assist him “to discharge *his* arduous employment,” not *theirs*. 4 *Debates on the Constitution* 109 (J. Elliot 2d ed. 1891) (J. Iredell) (emphasis added). As such, the

Government's "ministers" were required to "exercise their functions in subordination to the Executive," whether their tasks were big or small. 2 Farrand's Records 54 (G. Morris). Hamilton made the same point. "The persons . . . to whose immediate management" the President's powers "are committed, ought to be considered as the assistants or deputies of the Chief Magistrate, and on this account, they ought to derive their offices from his appointment, at least from his nomination, and ought to be subject to his superintendence." The Federalist No. 72, at 436. In so structuring the Government, the Convention "rejected a committee-style Executive Branch in favor of a unitary and accountable President, standing under law, yet over" his department heads. A. Amar, Some Opinions on the Opinion Clause, 82 Va. L. Rev. 647 (1996). It helped in reaching that conclusion, of course, that everyone at the Convention knew who that President would be—the Convention's presiding officer, George Washington. See J. Flexner, George Washington and the New Nation: 1783–1793, pp. 133–134 (1970).

Because these officers were subject to the President's superintendence, they had to be removable by him at will. For one, that was just part of what it meant to wield "the executive power," as it was understood at the time of ratification. Jefferson wrote as early as 1780 that "[t]he power of appointing and removing executive officers [is] inherent in [the] Executive," as "[h]e who appoints may remove." 4 Papers of Thomas Jefferson 281 (1951). And as to this power, the Constitution's words were chosen carefully—it was the President who would "appoint" the principal "Officers of the United States," with the Senate providing "Advice and Consent." Art. II, § 2, cl. 2; cf. The Federalist No. 66, at 404 (A. Hamilton) ("[I]n all the governments with which we are acquainted . . . those who hold offices during pleasure [are] dependent on the pleasure of those who appoint them"). If the Framers intended to depart from this convention, one might have expected them to say so.

For another, the power to remove at will was a necessary corollary of the Constitution's design. The "unity" of the Executive Branch would be "destroyed," Hamilton wrote, if it were vested "ostensibly in one man, subject in whole or in part to the control and co-operation of others, in the capacity of counselors to him." *Id.*, No. 70, at 424. But that is precisely what would occur if the President's so-called assistants could exercise *his* power against *his* wishes. Only if the President's deputies were removable at will would they truly be "subordinate" to "the sole executive magistrate." See *id.*, No. 47, at 303 (J. Madison). And only then could the Constitution live up to James Iredell's boast that "the President" would "be *personally responsible* for everything." Answers to Mr. Mason's Objections to the New Constitution (1788), in Pamphlets on the Constitution of the United States 348 (P. Ford ed. 1888); see also 1 Writings of James Monroe 331 (S. Hamilton ed. 1898) ("I would repose the whole trust of this department in one officer, so he alone should be responsible for all its transactions"). Text and structure thus both taught that the President had to be able to remove those who fail to live up to their duties, lest he fail to live up to his.

2

This aspect of the President's role was confirmed in the Constitution's first year—and in the years that followed. The result was a "regular course of practice" that "liquidate[d] & settle[d]" the President's power of removal, 8 Writings of James Madison 450 (G. Hunt ed. 1908), a construction followed by every branch of "the Genl. Govt, . . . thro all the vicissitudes of Party," 9 *id.*, at 333 (1910). See also The Federalist No. 37, at 228–229 (J. Madison). [The majority here summarizes the Decision of 1789.] . . .

Congress's confirmation of the President's power quickly took hold—and even gained fame as "the Decision of 1789." "After very long debates," Madison wrote to Jefferson, Congress

had endorsed the view that “the Executive function of removal” was “vested in the President,” a decision “most consonant to the text of the Constitution” and “to the requisite responsibility and harmony in the Executive Department.” Even those who opposed Congress's decision recognized that the decision had been made. Take Representative Richard Bland Lee, who had argued that the question of who may remove officers was up to “[t]he Legislature,” as it could “create and establish offices” as it saw fit. After the bills had been enacted, Lee wrote that it “was determined in the affirmative” that the President “had, or ought to have, from a fair Construction of the constitution,” the power to remove his own appointees. And even those far removed from the debates saw the issue as settled, including Chief Justice Marshall, see 5 J. Marshall, *The Life of George Washington* 199–200 (1807) (Marshall) (the decision was “a full expression of the sense of the legislature”), Chancellor Kent, see 1 J. Kent, *Commentaries on American Law* 289–290 (1826) (the decision “firmly and definitively settled” the matter), and Justice Story, 3 J. Story, *Commentaries on the Constitution of the United States* § 1537, p. 395 (1833) (Story) (expressing doubts about the decision from first principles, but noting that “[t]he public . . . acquiesced in this decision” and that it “has not been questioned on many other occasions”).

Early Presidents of all persuasions, too, hewed to the Decision of 1789. Washington saw it as his “indispensable duty” to remove officers who failed to live up to his expectations. His Cabinet agreed, taking the stance that the ability to “remove from office” was “an essential attribute of Executive Power.” The first President Adams said the same. See 20 *Papers of John Adams* 150–151 (S. Georgini et al. eds. 2020) (noting his support for “the President[’s] Power of Removal, according to the Constitution”). So did Jefferson. See 4 *Papers of Thomas Jefferson*, at 281 (the power to “remov[e] executive officers [is] inherent in [the] Executive”). So did Madison. See 2 *Papers of James Madison* 192 (D. Mattern, J. Stagg, M. Johnson, & A. Colony eds. 2013) (one of the “[c]onstitutional attributes of the Executive” is to determine “[t]he tenure of the office” of subordinates). So did Monroe, along with the second President Adams. 7 *Memoirs of John Quincy Adams* 424–425 (C. Adams ed. 1875) (citing Monroe for the view that “the tenure of all subordinate executive Offices” is “necessarily the pleasure of the chief by whom they were commissioned,” and agreeing with “the principle established by Mr Monroe”).

And so did Jackson—much to Congress's dismay. Unlike his predecessors, who (except for Jefferson) utilized their removal power sparingly, Jackson fired hundreds “of subordinates for personal and partisan reasons.” L. White, *The Jacksonians: A Study in Administrative History, 1829–1861*, p. 33 (1954) (White); see also *id.*, at 307–308. But even Jackson's most vehement critics acknowledged that he had the power to do as he pleased. “I consider it . . . a settled point,” Senator Daniel Webster said, “settled by construction, settled by precedent, settled by the practice of the Government, and settled by statute.” 11 *Cong. Deb.* 461 (1835). When Webster tried to unsettle the Decision of 1789 through new legislation, the effort failed, only further cementing the President's power. See White 41–44. As Webster—still in the Senate—put it 15 years later:

“[S]ince the practice has become a settled practice, since every Administration has indulged in it, and since it must now be considered, as the legal construction of the Constitution, . . . it follows . . . that this power, thus legally vested in the President, must be exercised by him as independently of our control as any other power that is to be exercised by him under the Constitution.”

Cong. Globe, 31st Cong., 1st Sess., 1126 (1850).

B

What text, history, and structure settle, our precedent confirms—the President may remove his subordinates at will.

Twice in the 19th century, we reaffirmed what the First Congress had held. The text of the Constitution “is silent with respect to the power of removal from office,” we noted in our first case on the subject. *Ex parte Hennen*, 13 Pet. 230, 258, 10 L.Ed. 138 (1839). But “it was very early adopted, as the practical construction of the Constitution,” that the power “to remove, where the tenure of the office was not fixed by the Constitution,” was “vested in the President alone.” *Id.*, at 259. “And such would appear to have been the legislative construction of the Constitution” too, given “the organization of the three great departments” “in the year 1789.” Our second case was of a piece. “[T]he decision of Congress in 1789, and the universal practice of the Government under it,” we explained, “ha[s] settled the question beyond any power of alteration.” *Parsons v. United States*, 167 U.S. 324, 330 (1897).

Our landmark decision, however, came 100 years ago in *Myers v. United States*. That case arose from an unlikely source—a dispute over management of the post office in Portland, Oregon. Under an 1876 statute, the President had to receive the “advice and consent of the Senate” not only to *appoint* postmasters but also to *remove* them. For reasons that are now lost to history, President Wilson fired Portland's postmaster, Frank Myers, and did so without the Senate's consent. Myers sued for backpay.

In a scholarly opinion, Chief Justice Taft rejected Myers's suit and reaffirmed the President's power to fire his subordinates at will. That power arose, he wrote for the Court, from the Constitution's text, history, and structure, just as the First Congress had held in 1789. “The vesting of the executive power in the President was essentially a grant of the power to execute the laws,” Chief Justice Taft explained. “As he is charged specifically to take care that [the laws] be faithfully executed, the reasonable implication,” he continued, “was that as part of his executive power” he must be able to “remov[e] those for whom he can not continue to be responsible.” “Mr. Madison and his associates” made this same point, the Chief Justice noted, and they “dwelt at length upon the necessity there was for construing Article II to give the President the sole power of removal in his responsibility for the conduct of the executive branch.”

But Chief Justice Taft emphasized that it was not just the First Congress that had come to this conclusion. The First Congress supplied “a precedent upon which many future laws . . . would be based”—and if it had erred, the next Congresses would have “dissent[ed] and depart[ed]” from its view. Quite the opposite occurred, the Chief Justice explained. The Decision of 1789 “was soon accepted as a final decision of the question by all branches of the Government.” For “74 years, there was no act of Congress, no executive act, and no decision of this Court at variance with the declaration of the First Congress.”

In the wake of the Civil War, Chief Justice Taft noted, Congress sought to “reverse this constitutional construction”—but in the end only confirmed it. “This reversal grew out of the serious political differences” between President Johnson—a Jacksonian Democrat—and congressional Republicans, who boasted “a two-thirds majority” in both Houses of Congress. Over Johnson's veto, Congress sought to “curtail the then acknowledged powers of the President” with the Tenure of Office Act, which required him to receive the Senate's consent before firing most officers. “[T]he injury and invalidity” of the law was “immediately recognized by the Executive and objected to”—and not just by Johnson. “General Grant, succeeding Mr. Johnson in the Presidency”—and no fan of Johnson or his program—“earnestly recommended in his first message the total repeal” of the law. “What faith can an Executive put in officials forced upon him?” Grant asked. “How will such officials be likely to serve an Administration which they know does not trust them?” Despite Grant's efforts, “[t]he feeling growing out of the controversy with

President Johnson retained the act on the statute book”—and led to one other such law, the one for postmasters at issue in that very case—“until 1887,” when the Tenure in Office Act was repealed.

What these events revealed, Chief Justice Taft wrote, was not Presidential “acquiescence” but resistance, a consistent rejection of “the validity of such legislation” as incompatible with “the legislative action of 1789.” At issue in *Myers*, then, as the Chief Justice saw it, was whether “to set aside” the First Congress’s “construction, thus buttressed, and adopt an adverse view,” contrary to the Constitution’s text, history, and structure. The Court refused to do so. It hewed instead to the “constitutional construction . . . reached by the First Congress of the United States . . . and acquiesced in by the whole Government for three-quarters of a century.” Any law to the contrary, the Court concluded, was “in violation of the Constitution, and invalid.”

2

While *Myers* was perhaps our best word on the subject, it was not our last.

a

Just nine years after *Myers*, we handed down *Humphrey’s Executor*, 295 U.S. 602. The case arose out of President Roosevelt’s decision to fire one of President Hoover’s appointees to the Federal Trade Commission, William Humphrey, two years into Humphrey’s seven-year term. Humphrey lauded Hoover “as the foremost figure of the world,” a man who fought back against “the demagogue, the fanatic, the reformer, and the fool.” Washington, D. C., Evening Star, Mar. 11, 1932, p. D11, col. 8. On the Commission, Humphrey sought to do the same. He often spoke to the press, and described the FTC variously as “a publicity bureau” used “to spread Socialistic propaganda,” Boston Globe, Dec. 14, 1926, p. 5, cols. 3–4, a “bureaucracy gone insane,” N. Y. Times, Feb. 3, 1929, p. 19, col. 1, and “an instrument of oppression and disturbance and injury,” Orlando Evening Star, Jan. 7, 1931, p. 3, col. 3. Roosevelt saw matters differently, and requested Humphrey’s resignation. Humphrey refused, so Roosevelt fired him in a one-line letter that did not specify a cause for his removal—seemingly contrary to a statute permitting removal of Commissioners only for “inefficiency, neglect of duty, or malfeasance in office.” § 1, 38 Stat. 718. Humphrey died soon thereafter, and the executor of his estate sued for backpay.

On a day that New Dealers would dub “Black Monday,” the Court ruled unanimously against the President—as it did in two other cases decided that same day, *A. L. A. Schechter Poultry Corp. v. United States*, and *Louisville Joint Stock Land Bank v. Radford*. See A. Schlesinger, *The Politics of Upheaval* 279–290 (1960). *Schechter* and *Radford* were quite a blow to the President, invalidating aspects of his signature legislation. *Schechter* found an unconstitutional delegation of legislative power in a statute that gave the President free rein to prescribe “standards of fair competition” business was obliged to follow. And *Radford* found a violation of the Takings Clause in a statute that allowed farmers who defaulted on their mortgages to retain possession of their property for years on end.

Having to contend with *Myers*, *Humphrey’s* said far less. Justice Sutherland, writing for the Court, started by reaffirming that the President possesses “the exclusive and illimitable power” to remove “all purely executive officers,” just as *Myers* held. He then pivoted. There are some presidentially appointed officials, he explained, who may perform “executive function[s]” but exercise “no part of the executive power.” And for those officials, “the decision in the *Myers* case cannot be accepted as controlling.”

The Court held that William Humphrey was one such official. That was because the FTC’s duties were very limited—they were “neither political nor executive, but predominantly quasi-judicial and quasi-legislative.” When courts requested the FTC’s help as a “master in chancery” to recommend appropriate remedies in antitrust litigation, for instance, it acted solely

as a judicial aid. When Congress requested the FTC's help to "mak[e] investigations and reports" on certain topics, it acted solely as a legislative aid. And when it brought (and adjudicated) charges against corporations it suspected of using "unfair methods of competition" in commerce, it acted "in part quasi-legislatively and in part quasi-judicially." Because these quasi functions did not require the use of "executive power," Justice Sutherland reasoned, *Humphrey* needed to answer only to Congress and the courts. Although the President may be the "master in his own house," he warned, he may not "impos[e] his control in the house of another."

b

From the start, *Humphrey's* was tethered to a highly circumscribed and almost fictional view of the FTC's role. *Humphrey's* by its terms applied only to agencies that occupy "no place in the executive department," are "independent of executive authority," and exercise "no part of the executive power." Indeed, Justice Sutherland took pains to emphasize that "the character of the office"—executive or nonexecutive—would determine the result of future cases, and to reiterate that the Court's decision was limited "to officers of the kind here under consideration."

In later cases, although *Humphrey's* announced dividing line remained intact, more and more functions, we concluded, in fact fell on the executive side of that line—and thus within the President's exclusive control. Where *Humphrey's* suggested that the power to enforce the law against particular parties could be merely "quasi-judicial," or "in aid" of federal courts,, we held the opposite. "A lawsuit is the ultimate remedy for a breach of the law," we explained in 1976, "and it is to the President, and not to the Congress, that the Constitution entrusts the responsibility to 'take Care that the Laws be faithfully executed.'" *Buckley v. Valeo*, 424 U.S. 1, 138 (*per curiam*) (quoting Art. II, § 3). And where *Humphrey's* suggested that the power to "fill[] in" "the details" of a "general standard" could be merely "quasi-legislative," or "in aid" of Congress, 295 U.S. at 628, 55 S.Ct. 869, we again held the opposite. Although "some administrative agency action . . . may resemble 'lawmaking,'" we explained in 1983, when an agency exercises "legislatively delegated authority" to regulate private conduct, it exercises "[e]xecutive" power. *INS v. Chadha*, 462 U.S. 919, 953, n. 16; see also *Bowsher v. Synar*, 478 U.S. 714, 733, 106 S.Ct. 3181, 92 L.Ed.2d 583 (1986) ("Interpreting a law enacted by Congress to implement the legislative mandate is the very essence of 'execution' of the law.").

Soon enough, we recognized that *Humphrey's* flunked even its own test. "[I]t is hard to dispute that the powers of the FTC," even "at the time of *Humphrey's Executor*," we explained in 1988, "would at the present time be considered 'executive,' at least to some degree." *Morrison v. Olson*, 487 U.S. 654, 690, n. 28. Not one for understatement, Justice Scalia observed in dissent that the Court had "swept" *Humphrey's* "into the dustbin of repudiated constitutional principles." 487 U.S. at 725. The Court put the matter more delicately, but no less definitively. "We undoubtedly did rely on the terms 'quasi-legislative' and 'quasi-judicial' " in *Humphrey's*, the Court noted, "but our present considered view is that" the constitutional question "cannot be made to turn on" such "rigid categories," at least for inferior officers. 487 U.S. at 689.

Fast forward another few decades, and *Humphrey's* premises had been further undermined. In two cases, *Free Enterprise Fund v. Public Company Accounting Oversight Board*, 561 U.S. 477, (2010), and *Seila Law LLC v. Consumer Financial Protection Bureau*, 591 U.S. 197 (2020), we again considered the permissibility of restrictions on the President's power of removal. In both cases, we reiterated *Myers's* rule that the President exercises "general administrative control of those executing the laws" and thus must be able to "remov[e] those for whom he can not continue to be responsible." In both cases, we emphasized that *Humphrey's* had to be read "on its own terms," and thus applies only to agencies that perform " 'specified duties as a legislative or as a

judicial aid.’ “ And in both cases, we refused to extend *Humphrey's* to a “new situation”—in *Free Enterprise Fund*, two layers of for-cause removal within an agency, and in *Seila Law*, for-cause removal protection for the sole head of an agency. As we put it in *Seila Law*, *Humphrey's* is not a “freestanding invitation for Congress” to limit the President’s constitutional power.

Humphrey's framework, in short, has not withstood the test of time. While *Humphrey's* was surely right to focus on “the character of the office” at issue, and surely right to say that “purely executive” powers must be controlled by the President, we long ago abandoned the notion that there are some powers that are only *partly* executive. Forty years have now passed, in fact, since we recognized that the FTC exercises executive power—and did so even in 1935, when *Humphrey's* was decided. And more than 200 years have passed since we recognized that the Constitution “vests the whole executive power in the President” alone. *Osborn v. Bank of United States*, 9 Wheat. 738, 819, 22 U.S. 738 (1824) (Marshall, C. J., for the Court).

At this point, all that is left of *Humphrey's* is its observation that an agency that “exercises no part of the executive power” need not fall within the rule of Presidential removal. If Congress wishes to establish independent agencies to assist it with its functions, it may do so. But it may not foist those agencies upon the President, and thus deprive him of “the executive power vested [in him] by the Constitution”—something *Humphrey's* itself never purported to permit.

C

If anything more *is* left of *Humphrey's*, we overrule it. *Humphrey's* has for decades been a result in search of a rationale. As we have often said, *stare decisis* is not an “inexorable command,” and is at its weakest in constitutional cases, where only we may readily fix our own mistakes. Our precedents about precedent teach that a number of factors are relevant. Here, every factor—the “quality” of the decision’s reasoning, its “consistency” with our other cases, the “workability” of its rule, and the interests of those who have “reli[ed]” on it, *Knick v. Township of Scott*, 588 U.S. 180, 203 (2019)—counsels in favor of letting *Humphrey's* go.

Humphrey's has been difficult to make sense of from the start. “[O]nly by blind feats of definition” could the Court transform powers that are quintessentially executive—investigative and prosecutorial alike—into nonexecutive “quasi-legislative” and “quasi-judicial” functions. P. Strauss, *The Places of Agencies in Government*, 84 Colum. L. Rev. 573, 625 (1984). As Justice Jackson memorably put it, *Humphrey's* “retreat to the qualifying ‘quasi’ is implicit with confession that all recognized classifications have broken down, and ‘quasi’ is a smooth cover which we draw over our confusion as we might use a counterpane to conceal a disordered bed.” *FTC v. Ruberoid Co.*, 343 U.S. 470, 487–488 (1952) (dissenting opinion). When an agency “executes” a congressional mandate against private parties, it exercises executive power—no ifs, ands, or quasies about it.

For that reason, *Humphrey's* is now far out of step with our cases, which have all but limited it to its facts. We long ago retreated from *Humphrey's*. We applied it only once, in 1958, to a solely adjudicatory body that dealt with a limited category of claims for compensation from those imprisoned or interned in the Second World War. *Wiener v. United States*, 357 U.S. 349, 355–356. And even then, our constitutional analysis spanned only one brisk paragraph, as the case focused on the question whether the statute limited the President’s power at all. Since then, we have undermined *Humphrey's* premises at every turn. To persist in *Humphrey's* would require us to depart from almost every case on the subject we have decided since.

Little surprise, then, that no one knows how to apply *Humphrey's* in practice. Does it protect all multimember agencies? See *Wilcox v. Trump*, 775 F.Supp.3d 215, 234 (DDC 2025). Or only those that are balanced along partisan lines? See *Space Exploration Technologies Corp. v.*

NLRB, 151 F.4th 761, 777–778 (CA5 2025). Those that wield some executive power, but not a lot? See *Consumers’ Research v. Consumer Prod. Safety Comm’n*, 98 F.4th 646, 652 (CA5 2024) (Oldham, J., dissenting from denial of rehearing en banc). Or only those that do not wield the President’s “conclusive and preclusive” powers? Or perhaps it is only those that are “materially indistinguishable from the 1935 FTC”? See *Harris v. Bessent*, 2025 WL 980278, *15 (CADC 2025) (Walker, J., concurring). With its indeterminacy and unpredictability, *Humphrey’s* “has undermined the very ‘rule of law’ values that *stare decisis* exists to secure.”

All that is left is reliance, upon which Slaughter (and the dissent) rely. Slaughter argues that Congress has relied upon *Humphrey’s* to create agencies that are “insulated from presidential control.” That is precisely the problem. Despite what *Humphrey’s* may say, independent agencies are not “independent” in the sense that they are free of the President and thus responsive “only to the people of the United States.” Independent agencies are insulated “from the President,” “not from politics.” *FCC v. Fox Television Stations, Inc.*, 556 U.S. 502, 523 (2009) (plurality opinion). “As a practical matter, successful insulation of administration from the President—even if accomplished in the name of ‘independence’—will tend to enhance Congress’s own authority over the insulated activities.” E. Kagan, *Presidential Administration*, 114 Harv. L. Rev. 2245, 2271, n. 93 (2001). Placing the power to administer laws in officers who enjoy “freedom from Presidential oversight (and protection),” in other words, does not deliver us to a promised land of technocratic governance—it often results only in an “increased subservience to congressional direction.” *Fox Television*, 556 U.S. at 523 (plurality opinion). Congress may well have relied on *Humphrey’s* in taking more power for itself, but that is hardly one of the “legitimate” reliance interests that our precedents contemplate. No branch may rely on adverse possession to claim power that the Constitution vests elsewhere.³

The dissent contends that we ignore the reliance interests of “[o]rdinary Americans and regulated firms alike.” *Post*, at —. Quite the contrary. “In its valiant search for reliance interests,” it is “the dissent [that] somehow misses maybe the most important one: the reliance interests of the American people . . . in the preservation of our constitutionally promised liberties.” *Ramos v. Louisiana*, 590 U.S. 83, 110–111(2020) (plurality opinion of GORSUCH, J., joined by, *inter alios*, SOTOMAYOR, J.). “The diffusion of power carries with it a diffusion of accountability.” When power is exercised well, the people know whom to thank; when power is exercised poorly, they know whom to blame—and whom to fire. That is the very premise of our system of government. See *The Federalist* No. 70, at 424 (A. Hamilton) (“The ingredients which constitute safety in the republican sense are a due dependence on the people, and a due responsibility.”). We adhere to that system today not in spite of the reliance interests of all Americans but because of them.

III A

³³ The dissent nevertheless insists that “[i]ndependence was centrally important to Congress in creating these agencies” and indeed that “[a]t no point was it proposed that a commission ought to be set up unless it be independent.” *Post*, at — (internal quotation marks omitted). To the extent that consideration is relevant, it is relevant only in the context of severability. In our prior cases, “when confronting a constitutional flaw in a statute” like the one before us, we have sought to limit “the solution to the problem,” severing the invalid removal provision “while leaving the remainder intact.” . . . If the dissent now disagrees with that approach, and believes that Congress generally “would have preferred no [agency] at all to [an agency] whose members are removable at will,” *Free Enterprise Fund*, 561 U.S. at 509, it is free to urge as much in a case in which the severability question is before us. In any event, the solution to “an Executive Branch that Congress never dreamed of establishing,” *post*, at — (SOTOMAYOR, J., dissenting), is not a headless fourth branch that the Framers never dreamed of establishing.

With these principles in mind, this is not a close case. The FTC’s for-cause removal provision violates the separation of powers. In its present form, the FTC enforces and administers some 80 statutes, which cover almost every facet of our Nation’s economy. The tasks it undertakes are “the very essence of ‘execution’ of the law”—precisely the President’s constitutional role. *Bowsher*, 478 U.S. at 733.

First, the FTC has the power to promulgate substantive rules that carry the force of law. In the consumer-protection realm, for instance, the FTC is tasked with giving content to the startlingly abstract idea of “acts or practices which are unfair or deceptive.” 15 U.S.C. § 57a(a)(1) (B). In other areas, it must, for example, determine what “documentary material and information” one company must provide when it wishes to acquire another, § 18a(d), decide when and how websites must seek “verifiable parental consent” when their services collect children’s personal information, § 6502(b), and “prescribe as necessary or appropriate in the public interest or for the protection of United States citizens” rules barring the use of any “manipulative” technique in the sale of gasoline, 42 U.S.C. § 17301. The power to flesh out such statutory regimes—and to do so through discretionary actions, largely outside the remit of courts—is executive through and through.

Second, the FTC not only investigates businesses to ensure they comply with its statutes and rules, 15 U.S.C. §§ 43, 46(a), 49, but enforces those statutes and rules through in-house adjudications. Indeed, it may even place the onus on a private party to comply with its orders—on pain of monetary penalties—before the case reaches the courts. See § 45(g)(2). This power, too, is executive. *Seila Law*, 591 U.S. at 219 (discussing the ability to “unilaterally issue final decisions” in “administrative adjudications”).

And third, the FTC files civil suits on behalf of the United States in federal court. It may select its remedies freely—from injunctions, § 53(b), to civil penalties, § 45(m), to any relief “necessary to redress injury to consumers,” including the “refund of money or return of property,” § 57b(b).⁴ As we have said many times, the “discretionary power to seek judicial relief “ lies at the very core of executive authority. *Buckley*, 424 U.S. at 138, 96 S.Ct. 612; see also, *e.g.*, *United States v. Texas*, 599 U.S. 670, 678–679, 143 S.Ct. 1964, 216 L.Ed.2d 624 (2023) (it is up to the Executive to “decide how to prioritize and how aggressively to pursue legal actions against defendants who violate the law” (internal quotation marks omitted)). That “quintessentially executive” power may not be cleaved off from the Executive Branch.

The FTC unquestionably exercises executive power, and must therefore be controlled by the Chief Executive, in whom such power is vested. It follows, then, that Slaughter served as the President’s subordinate at the FTC—and that the President was entitled to cut her tenure short.

B

Because the FTC’s activities fall well within the heartland of executive power, we have no occasion today to define the bounds of what such power entails. As our precedents recognize, not all offices created by Congress necessarily come with executive or even sovereign power attached. See, *e.g.*, *Buckley*, 424 U.S. at 137–138 (contrasting the “discretionary power to seek judicial relief “ with powers “of an investigative and informative nature,” which may “be regarded as merely in aid of the legislative function of Congress”). To suggest otherwise would come as a surprise to, among other congressionally chartered entities, the Boy Scouts of America, 112 Stat. 1325, the Society of American Florists and Ornamental Horticulturalists, ch. 876, 31 Stat. 1453, and Georgetown University, ch. 70, 6 Stat. 152.

Relatedly, we have left open the possibility that some functions traditionally handled outside the Executive Branch may not be encompassed by *Myers*’s general rule. Indeed, *Myers*

itself placed “the greatest weight” on the early Congresses’ (and early Presidents’) “contemporaneous legislative exposition” of the Executive’s constitutional role. And one example we have given of an entity that may have such a unique role is the Federal Reserve, to the extent that it follows in the distinct historical tradition of the First and Second Banks of the United States—both of which influenced monetary policy and neither of which were subject to plenary Presidential control. Our prior cases do not necessarily implicate the constitutionality of such arrangements. Our opinion today should not be read to do so either.

Nor do we determine the fate of officials not before us. In particular, as the Solicitor General recognized at argument, the permissibility of tenure protections for the judges of “non-Article III courts,” such as the Tax Court and the Court of Federal Claims, is not “presented” or “briefed” in this case and poses a “different set of questions.” We leave those questions for another day. All we do today is recognize what has been clear for a century—that those who fall within the President’s “general administrative control” must be removable by the President at will.

IV

Although she disagrees with our conclusion, Slaughter at least accepts many of our premises. She agrees, for instance, that officers with “purely executive functions,” like the “postmaster in *Myers*,” must be removable at will by the President. She agrees that “*Seila Law* is correct.” And she agrees that “the Vesting Clause of Article II . . . establish[es] a general default presidential removal power.”

The dissent, on the other hand, sweeps the chess pieces off the board, rejecting not only *Free Enterprise Fund* and *Seila Law* but *Myers* and the Decision of 1789 as well. On its view, “there is no evidence that those who shaped or ratified the Constitution adopted the . . . general rule of at-will removal,” no matter the view expressed by Washington, Jefferson, Madison, and Hamilton in the first years of the Republic; no matter the practice of the First Congress and all our early Presidents; and no matter the Convention’s insistence upon “[u]nity in the Executive,” 1 Farrand’s Records 66 (J. Wilson).

To support its own position, the dissent relies on two passing comments in *The Federalist*. Neither one helps. In *Federalist* No. 39, Madison noted that the “tenure” of “ministerial offices . . . will be a subject of legal regulation,” *The Federalist* No. 39, at 242, but it beggars belief to suggest that he intended so obliquely to permit Congress to hem in the President—it is far more likely that he intended only to endorse “regulation” of “tenure” in the sense of a limited term for executive officers, subject to Presidential removal in the interim.⁵ And in *Federalist* No. 77, Hamilton said that the Senate’s consent “would be necessary to displace as well as to appoint,” but it remains a subject of scholarly debate whether Hamilton meant “displace” in the sense of “remove” or “replace.” Certainly the idea that the Senate could force a new President to keep his predecessor’s Cabinet Secretaries is at odds with Hamilton’s claim that the Senate “cannot themselves *choose*” who will fill an office, even “if they withheld their assent” to the President’s pick; at odds with Hamilton’s claim that the executive power is vested in “one man” and is not subject “to the control and co-operation of others”; and at odds with Hamilton’s claim that executive officers are “the assistants or deputies of the Chief Magistrate” and thus must “derive their offices from his . . . nomination” and remain “subject to his superintendence.” Whatever Hamilton meant at first, by 1793 he had expressly recognized that “[t]he power of removal from office” forms part of “the Executive Power of the Nation . . . vested in the President.” *Pacificus* No. 1 (June 29, 1793), in 15 Papers of Alexander Hamilton 39–40 (H. Syrett ed. 1969). We see

⁵⁵ Indeed, that is precisely what Madison would propose a year later for the Comptroller of the Treasury. . . .

little reason why one line (really one word) from Federalist No. 77 should take precedence over the logic of The Federalist as a whole.

We certainly see no reason why it should take precedence over the Decision of 1789. When it comes to those debates, the dissent has little to offer, beyond its efforts to limit the decision's scope. Says the dissent: "The House in 1789 did not address whether Congress could place any limits on the President's power to remove," for it debated only whether the President had such a power "*at all*." The two, however, are one and the same. In holding that the President has the power to remove his subordinates "without an express grant from Congress," Congress held that "the power of removal" forms part of "the Executive power," 1 Annals of Cong. 382 (Rep. Clymer). And to the extent that the power of removal is part of the executive power, it is as much outside Congress's control as the President's power to grant pardons, veto bills, and recognize foreign sovereigns.

That is why no one at the time saw the First Congress as having endorsed merely a "default" "Presidential removal power" (if such a thing is not a contradiction in terms). Madison, in fact, said just the opposite. Because "the Executive power" vested in the President includes the power "to remov[e] . . . from office," he explained, "the Legislature has no right to diminish or modify" that power. 1 Annals of Cong. 463. Chief Justice Marshall agreed, explaining that the Decision of 1789 viewed the President's "power of removal" as "fixed in the constitution" and thus free from "legislative instability." 5 Marshall 200. The same was true for Justice Story, who said that the decision "expressed the sense of the legislature, that the power of removal by the executive [of principal officers] could not be abridged by the legislature."

With no support in the First Congress's actual debate on the subject, the dissent (this time joined by Slaughter) turns to three early agencies that it contends were "at least semi-independent." But the members of these agencies, too, were removable by the President at will. Indeed, the first of the three, the Revolutionary War Debt Commission, was composed solely of Presidential appointees, with a statute that did not purport to limit the President's power of removal. See Act of Aug. 5, 1790, ch. 38, 1 Stat. 178.⁷ And the latter two, the Mint Board and the Sinking Fund Commission, were both composed mostly of Cabinet Secretaries, who (all agree) could be fired at any time. See Act of Apr. 2, 1792, 1 Stat. 250 (Mint Board); Act of Aug. 12, 1790, ch. 47, 1 Stat. 186 (Sinking Fund Commission). The only question arises as to one member of the Mint Board (the Chief Justice) and two members of the Sinking Fund Commission (the Chief Justice and the Vice President). Of course the President could not fire either one from his underlying position, but that did not mean that he was unable to oust them from service within the Executive Branch itself. It is true that the President could not "add a new Vice President or Chief Justice" to replace them, but that poses no constitutional problem. Either way, the President remains responsible—if he chooses to keep them in office, he is responsible for their conduct; if he chooses to remove them, he is responsible for the conduct of those who are left. Certainly these examples do not show that the founding-era Congress thought that it could take away the President's power and give it to someone else, much less the Chief Justice or the Vice President.

With no support in the founding era as a whole, the dissent opts to skip ahead a century or two. "Today," the dissent notes, "dozens of agencies are headed by commissioners or board members removable only for cause," and "this longstanding practice" (it contends) "should be entitled to significant weight." We have never endorsed such a practice-makes-perfect theory of congressional power, and in fact rejected it in *INS v. Chadha*, 462 U.S. 919 (1983). At issue in *Chadha* were the nearly 300 legislative vetoes adopted by the political branches over the course of 50 years—with more and more enacted each year. As we saw matters, however, the popularity

of the congressional veto only “sharpened” our review. Such “ ‘political inventions’ “ must remain subject to “the demands of the Constitution,” we said, lest the political branches amend by agreement “integral parts of the constitutional design.” We say the same today.

To bolster its reliance on modern practice, the dissent focuses on a modern case, *Humphrey’s*.⁹ But it defends a version of *Humphrey’s* that does not exist. . . . Only halfway through a footnote does the dissent acknowledge that “*Humphrey’s* described the FTC [in 1935] as sharing ‘no part of the executive power. “ . . . Nowhere does the dissent argue, however, that the FTC today exercises “no part of the executive power” or (to quote further from *Humphrey’s*) that the FTC occupies “no place in the executive department” and ought to be “independent of executive authority.” The dissent may not keep the parts of *Humphrey’s* it likes and discard the rest.

Indeed, the dissent’s ode to *stare decisis* is hard to reconcile with its reinvention of *Humphrey’s* and shabby treatment of *Myers*. At least we have accorded *Humphrey’s* a respectful burial; the dissent would cast *Myers* aside without a second thought. . . .

When it comes to its own proposal for how precisely *Humphrey’s* should work in practice, the dissent says very little. Slaughter, for her part, is left with the vague argument that we should police Congress’s decisions for “reasonableness.” “[I]f Congress reasonably decides that the President should be able to remove some duly appointed officers only for certain causes and through certain processes,” she argues, the courts should respect that decision, and require that the President “discharge his obligations under the Take Care Clause by going through those processes when warranted.”

That supposed limiting principle is neither limiting nor much of a principle. On Slaughter’s view (and presumably the dissent’s), Congress could commandeer the Environmental Protection Agency, the Department of Commerce, the Department of Education, the Department of Health and Human Services, most (if not at all) of the Department of Justice, and a number of other agencies besides. Indeed, it is not clear to us why Congress would need to allow the President any say in firings. If it is so “critical” for an agency “to have independence and to act with impartiality free from the suspicion of partisan direction,” then why should the President have a role at all?

The answer, then as now, is that these officers exercise the *President’s* power, not their own, and thus must be *responsible* to him. We do not allow intrusions on Article I nor on Article III. See We see no reason to allow intrusions on Article II either.

* * *

Our Constitution creates three branches, but only one President. That President is not all powerful—not by any means.. But he is not impotent either. He and he alone is vested with “[t]he executive Power” of the United States. Art. II, § 1, cl. 1.

To “discharg[e] the duties of his trust,” the President must have the assistance of officers he can trust. Although it is up to the Senate to decide whether to confirm those with whom the President would *prefer* to work, neither Congress nor the courts may saddle him with those with whom he *cannot* work. Subordinates who exercise the President’s power are subject to removal by him. Then, and only then, can they remain accountable to the President, and the President to the people.

The judgment of the United States District Court for the District of Columbia is reversed, and the case is remanded for further proceedings consistent with this opinion.

It is so ordered.

Justice GORSUCH, concurring.

To fulfill his constitutional duty to ensure the laws are faithfully executed, the Court holds, the President must have the ability to remove principal officers who exercise executive power in his name. That includes those who run independent agencies like the Federal Trade Commission (FTC). With all this, I agree.

But neither can I ignore the implications that follow. Today, independent agencies do not just exercise executive law-enforcement powers. Congress has also delegated to them vast legislative and judicial powers, effectively allowing these agencies to make laws and decide disputes under them. And, after today's decision, the President can effectively exercise all those powers too.

It's a development that raises important questions, not least these: Would Congress have delegated so much power, including legislative and judicial power, to independent agencies had it known that the President would come to control them? How will Congress respond now—if realistically it can? And what, if anything, will this Court do about it?

I

[Justice Gorsuch accounts how progressive scholars, including Woodrow Wilson and James Landis, successfully advocated for a reform of American government that would involve the creation of new agencies to “deal with modern problems.” Those agencies would have expert staffs, who, in turn, would enjoy some insulation from political control. To accomplish their purposes, they would also be able to exercise what amounted to legislative and judicial functions.]

. . . The result? Independent agencies today hold tremendous sway over the Nation's affairs. They regulate our businesses, 15 U.S.C. § 57a, and our financial markets, § 78w. They set the rules for the internet and airwaves. 47 U.S.C. § 303. They decide how we light our homes, 42 U.S.C. §§ 7171–7172, how we run our elections, 52 U.S.C. § 30106, and the manner of our employment, 29 U.S.C. §§ 153, 160. They determine what toys our children will play with, 15 U.S.C. §§ 2063(a)(2), (3), (d)(2), and how we interact with each other at work, 42 U.S.C. § 2000e–5. And, as the dissent explains, so much more.

Often, these agencies do all this with hardly any statutory guidance, based on broad grants of legislative authority. The FTC, for example, enjoys what the Court calls the “startlin[g]” power to define, outlaw, and prosecute any “ ‘acts or practices which are unfair or deceptive.’ ” *Ante*, at — (quoting 15 U.S.C. § 57a(a)(1)(B)). The Securities and Exchange Commission (SEC) may “make such rules and regulations as may be necessary or appropriate to implement,” 15 U.S.C. § 78w(a)(1), its mandate “to insure the maintenance of fair and honest markets,” § 78b. The Federal Communications Commission (FCC) has “exclusive authority to grant licenses” to broadcasters “based on ‘public convenience, interest, or necessity.’ ” *Metro Broadcasting, Inc. v. FCC*, 497 U.S. 547, 553, 110 S.Ct. 2997, 111 L.Ed.2d 445 (1990) (quoting 47 U.S.C. § 303). One could go on. . . .

Would Congress have gone so far down this road, delegating so much legislative and judicial power to agencies, without *Humphrey's* assurance that their leaders would enjoy protection against at-will presidential removal? Maybe. After all, Congress has also granted expansive authorities to various “executive” agencies whose heads have been subject to at-will presidential removal all along. But very possibly not. *Humphrey's* itself described removal protections as “essential” to the FTC's structure. 295 U.S. at 625. Ms. Slaughter cites evidence that “ ‘[a]t no point was it proposed that [an FTC] ought to be set up unless it be independent.’ ” Over the years, many commentators have offered similar assessments. See, *e.g.*, Landis 111 (noting “a correlation between the creation of the independent agency and broad grants of administrative power”); M. Bernstein, *Regulating Business by Independent Commission* 148–149

(1955) (observing that many delegations “might not have been enacted if Congress had not been able to delegate regulatory duties to agencies somewhat removed from continuing presidential guidance”). My dissenting colleagues share the same view too.

II

A

The Court’s decision today may take aim at removal protections and, in that way, one part of Wilson’s vision. But, as we have seen, other parts never fully materialized. It was never the case that neutral experts alone led the agencies Congress created. And it was never true that those agencies were entirely insulated from politics or even presidential influence. Nor can the demise of one more vestige of Wilson’s ambitions come as a surprise. As the Court persuasively explains, *Myers* was right all along and so was President Roosevelt: *Humphrey*’s did “violence to the basic theory of the American Constitution,” which leaves no room for a “headless ‘fourth branch.’” “Roosevelt Committee 36. Instead, those who exercise executive power must be accountable through a “chain of dependence” running from the “lowest officers” to “the President,” and from him to the sovereign American people. As even Wilson and Landis acknowledged, their plans for a new scheme of “public administration” always stood in more than a little tension with the Constitution’s design.

But if today’s decision represents an important step back toward the Constitution, it’s also worth considering the implications it holds for the last remaining pillar of Wilson’s plan. Apparently relying on the assumption that it can afford their leaders some protection against presidential removal, Congress has not just assigned executive law-enforcement power to independent agencies. It has delegated extensive lawmaking and adjudicative functions to them as well. Today’s decision may not have occasion to address those delegations directly, but it carries weighty consequences for them. Open-ended delegations of legislative power have not gone away; now they will just be exercised by agency officials who answer to the President. The power to write new regulatory crimes still exists, but now the pen ultimately rests in the President’s hand. The ability to judge disputes in-house remains, but now the house is white.

The whole of the President’s authority also may be greater than the sum of its parts. It would be one thing if today’s decision afforded the White House more control over the airwaves. Or financial markets. Or energy. But Presidents now will enjoy waxing authority over all those areas and more. A business out of favor with the party in control of the White House might be able to stave off an FCC investigation. But can it survive a subsequent FTC rule declaring unlawful one of its longstanding trade practices? What about an in-house adjudication by OSHA? Or a prosecution for a new crime the SEC announces? Not to mention what these now-coordinated powers could do to disfavored individuals who lack the resources needed to fend off such attacks. It may be true that after today there is no more “fourth branch” of government. But the fourth branch’s powers still exist; they have just been reassigned to the President.

If all that weren’t enough, Presidents have many other ways to consolidate their influence over agencies—both traditional executive agencies and now-formerly independent ones. Take just a couple examples. For decades, Presidents have employed the Office of Information and Regulatory Affairs (OIRA) to oversee proposed executive agency actions that carry significant economic impacts. And even before today’s decision, the President has extended OIRA review to many independent agencies. Separately, Presidents can sometimes adjust the reach of the civil service laws. While those laws ordinarily afford rank-and-file agency employees considerable protection against removal, they do not apply to certain employees who hold positions “of a confidential policy-determining, policy-making or policy-advocating character,” § 7511(b)(2).

And by classifying more and more positions as subject to this exception, Presidents can seek to exert greater control over not just agency leaders but their subordinates as well. See, *e.g.*, 91 Fed. Reg. 5580, 5628, 5650 (2026) (subjecting “tens of thousands” of additional positions, in both executive and independent agencies, to this exception).

So, yes, those who exercise executive power must be ultimately answerable to the President and, through him, to the American people. But while electoral accountability is a good thing, it cannot be the only thing. And allowing Presidents to control not only executive functions, but also vast new reservoirs of legislative and judicial powers, risks inviting exactly what those who framed our Constitution feared: the “accumulation of all powers . . . in the same hands, whether of one, a few or many, and whether hereditary, self appointed, *or elective*.” The Federalist No. 47, p. 324 (J. Cooke ed. 1961) (J. Madison) (emphasis added). No nation, after all, can expect happy results when “the legislative and executive powers are united in the same person”—or, one might add, when judicial powers are added to that union. *Id.*, at 325 (internal quotation marks omitted).

B

If allowing so much legislative and judicial power to accumulate in the President’s hands invites real risks, the question becomes: Who will address them?

At first blush, the most natural answer might seem Congress. Aware now that the premise on which it apparently proceeded was flawed—independent agencies are not so independent after all—Congress might wish to reconsider how much power should remain in the President’s hands. But if that seems a straightforward solution, there’s a straightforward problem with it. Of course, Congress still possesses tools—most notably its appropriations authority—to “influence how the President exercises” his legislative and judicial functions. But “[a]ny President keen on his own authority . . . will have a strong incentive to veto” any effort to reclaim those powers. The consequence is a ratchet effect: Authorities Congress once delegated by a simple majority may now require a veto-proof supermajority to retrieve.

Perhaps, then, if any real response is to come it will have to come from this Court. And that’s hardly unfair. To be sure, Congress had a hand in creating the problem we now face. But this Court bears responsibility as well. It was this Court that decided *Humphrey*’s. It was this Court that sat by while Congress delegated vast legislative and judicial powers to one independent agency after another. And it is this Court that today allows the President to remove those agencies’ leaders and exercise effective control over all their powers. If the task of fixing a problem belongs to those who made it, this Court has some work to do.

Fortunately, the Constitution provides the blueprint for the job ahead. That charter provides a far surer and more democratically legitimate scheme of “public administration” than anything Wilson conjured up. With the assent of the governed, and subject to amendment by them alone, our Constitution created three branches of government—not four, and not just one led by the President either. Each branch bears the authority and responsibility to exercise distinct powers. Congress must make the laws that govern us, the executive branch must faithfully execute those laws, and independent judges and juries must decide disputes that arise under them.

Fortunately, too, this Court already has many doctrines designed to protect the Constitution’s separation of powers. . . . The only real question is whether we will use them. . . . [E]ven if entrusting legislative and judicial powers to insulated, independent agencies once seemed a good idea to some, it’s simply not an option anymore. Now, we face only two ways forward: Let Presidents exercise all those powers or begin subjecting them to the Constitution’s constraints. . . .

Justice SOTOMAYOR, with whom Justice KAGAN and Justice JACKSON join, dissenting.

For most of this Nation’s history, Congress and the President together have decided that some Government functions should operate at a distance from partisan politics. Those include the management of nuclear energy; the security of the monetary supply; and the safety of American workplaces, consumer products, and chemical hazards. In these and many other areas, the wisdom of the centuries has taught that some decisions should depend not only on who is in office—much less on who is disfavored or owed a favor by those in office—but also on judgment, expertise, and the public good.

Since the founding, Congress has created agencies that in various ways have embodied this goal of independence. Over the last 140 years especially, the political branches have done so by establishing agencies like the Federal Trade Commission (FTC): bipartisan, multimember bodies with “for-cause” removal protections. This structure allows the agencies to address complex problems while enjoying some independence from Presidential removal and thus absolute partisan control. More than 90 years ago, this Court affirmed, as to the FTC specifically, that the constitutionality of its members’ “for cause” removal protections “cannot well be doubted.” *Humphrey’s Executor v. United States*, 295 U.S. 602, 629 (1935). Ever since, Congress and more than a dozen Presidents have relied on *Humphrey’s* to construct a workable Government, creating many other agencies in the FTC’s tradition.

Today, this Court undoes centuries of political practice and concludes that all three branches of Government have been acting in open defiance of the Constitution all this time. Its conclusion is wrong. The text of the Constitution, along with its history, the longstanding practices of the political branches, and the precedents of this Court, make clear that Congress may limit the causes for which the heads of Commissions like the FTC can be removed by the President. In holding otherwise, the Court gives the President a power unknown even to the English Crown against which the Founders revolted, elevating him above his once-coequal branches by transforming a duty to take care that the laws be faithfully executed into a license to act in defiance of those very laws. If nothing else, the doctrine of *stare decisis*, which today’s decision cursorily dismisses, should have made this a profoundly easy case under *Humphrey’s*.

Perhaps worst of all, the Court today forgets its place. For most of our history, the Court has rightly left the removal question primarily to its coequal branches. Today’s majority, however, decides that it knows better: better than members of the founding generation who created agencies, like the Sinking Fund Commission and the Bank of the United States, free from unfettered Presidential control; better than a century and a half of Congresses and Presidents, starting with Grover Cleveland and continuing into the 21st century, who created agencies in the FTC’s mold; better than even Hamilton, Story, Webster, Holmes, Brandeis, Frankfurter, and Rehnquist. These great statesmen and Justices knew something that today’s majority apparently does not: that fealty to the Constitution means respecting not just what it says, but what it does not say and by its silence leaves to others to decide. It also means respecting precedent—not as a wooden exercise, but out of a recognition that, whatever our confidence in the theories of the present moment, the wisdom of our founding document does not belong to today’s Justices alone. Because the Court ignores these foundational tenets, and in doing so upends rather than upholds the separation of powers, I respectfully dissent. . . .

II

Six years ago, this Court announced that the President generally must be able to fire executive officials “at will” (that is, for any reason or even no reason at all). *Seila Law LLC v. Consumer Financial Protection Bureau*, 591 U.S. 197, 204–205 (2020). In so holding, the Court

recognized “two exceptions” to that “general rule” of “unrestricted removal power”: one for inferior officers and one that allowed Congress to “create expert agencies led by a group of principal officers removable by the President only for good cause.” Today, the Court doubles back on the second exception for agencies like the FTC, and doubles down on its “general rule” that the President’s removal power cannot be cabined in any way. Its decision is grievously wrong.

A

1

. . . *Humphrey’s Executor v. United States* . . . the very statute at issue here, which allows the President to remove FTC Commissioners only “ ‘for inefficiency, neglect of duty, or malfeasance in office,’ ” and upheld its constitutionality against the very same challenge levied in this case.

In reaching that conclusion, the Court focused on the FTC’s “character.” The FTC, the Court explained, is a “body of experts” tasked with “carry[ing] into effect legislative policies embodied in the [FTC Act] in accordance with the legislative standard therein prescribed,” including by determining what constitutes “ ‘unfair methods of competition.’ ” “The agency thus was not purely executive; instead, it “act[ed] in part quasi-legislatively and in part quasi-judicially” by “filling in and administering the details embodied [in the law’s] general standard.” “[F]rom the very nature of its duties,” it was clear that the FTC “must . . . act with entire impartiality,” as “[i]t is charged with the enforcement of no policy except the policy of the law.”

For an agency of this “character,” the Court held that Congress permissibly could forbid Presidential “removal except for cause.” Given the FTC’s role in “carrying into operation” Congress’s legislative goals, it needed some independence from Presidential domination. It was “quite evident” to the Court, moreover, “that one who holds his office only during the pleasure of another . . . cannot be depended upon to maintain an attitude of independence against the latter’s will.” Indeed, the Court explained, James Madison had suggested much the same thing when discussing the office of the Comptroller of the Treasury in 1789. For executive officers whose duties “partak[e] strongly of the judicial character,” Madison explained, “there may be strong reasons why an officer of this kind should not hold his office at the pleasure of the Executive branch.” 1 Annals of Cong. 612. For the FTC too, the Court held, removal protections complied with the Constitution.

As Congress constructed a variety of agencies to serve the public’s needs over the decades that followed, see *infra*, at ———, this Court repeatedly applied and expanded the rule announced in *Humphrey’s*. In *Youngstown Sheet & Tube Co. v. Sawyer*, *Humphrey’s* was the only example Justice Jackson provided of a case in which the President’s “power [wa]s at its lowest ebb” and the President was thus prevented from “tak[ing] measures incompatible with the expressed or implied will of Congress.” Later, in *Wiener v. United States*, Justice Frankfurter’s opinion for a unanimous Court relied on *Humphrey’s* (describing it as a “*cause célèbre*”) to approve removal protections for the War Claims Commission, which settled claims by American prisoners of war and civil internees who suffered harm during World War II. The Court explained that “the essence of the decision in *Humphrey’s* case” was that certain Government officials, depending on their “function,” require and may be given independence “ ‘to exercise [their] judgment without the leave or hindrance of any other official.’ ” “

In later decades, the Court reaffirmed *Humphrey’s* rule that certain executive officers may enjoy for-cause protections. In *Morrison v. Olson*, Chief Justice Rehnquist, writing for a 7-to-1 Court, applied and expanded *Humphrey’s* in a new context, approving removal protections for an independent counsel tasked with investigating allegations of crime by high executive officers.

Rejecting the idea that the only officers who could permissibly be granted removal protections were those who exercised “ ‘quasi-legislative’ ” or “ ‘quasi-judicial’ powers,” the Court held that the more fundamental question was whether removal protections unduly “interfere[d] with the President’s exercise of the ‘executive power.’ ” Still, the Court explained, *Humphrey’s* “analysis of the functions served by the officials at issue” remains “[r]elevant” to answering that question. Considering the “functions of the” independent counsel, alongside the President’s remaining ability to exercise control over the office, the Court held that the for-cause removal statute at issue was constitutional.

Even in more recent cases in which the Court has declined to “extend *Humphrey’s* to a ‘new situation,’ ” *ante*, at —, the Court has underscored that *Humphrey’s* remains good law in its core application to multimember bodies like the FTC. In *Seila Law*, for instance, the Court held that removal protections were incompatible with an agency headed by a single director (rather than a multi-member commission). Even so, the principal opinion explicitly suggested that Congress could fix that problem by “converting” the single-headed Consumer Financial Protection Bureau, with all of the powers it possessed, “into a multimember agency” just like the FTC that *Humphrey’s* had addressed. 591 U.S. at 237 (opinion of ROBERTS, C. J., joined by ALITO and KAVANAUGH, JJ.).

Searching for a distinction, the Government (echoed by the majority) contends that *Humphrey’s* should not control as to the present-day FTC because the FTC’s powers have expanded over the years since *Humphrey’s* was decided. The premise that the FTC has fundamentally changed, however, is untrue: Contrary to the Government’s assertions, the FTC of 1935, like today’s FTC, had the power to conduct investigations, make rules, and bring enforcement actions. To the extent the FTC has gained power since 1914 (for example, the Government cites its ability to seek civil penalties, those changes at the margins do not so transform the “character of the office” as to bring the agency outside of *Humphrey’s* rule. If it were true that the political branches went too far in assigning certain powers to the FTC over the years, moreover, it is unclear why the appropriate remedy at this point would not be to sever these additional, objectionable powers. . . . There then would be no need to adopt a sweeping new rule that will transform the balance of power across the Federal Government and deprive the public of Government impartiality in serving the public’s needs.

Far from the minimal impact that the majority imagines *Humphrey’s* to have had, *Humphrey’s* has sat at the center of this Court’s separation-of-powers jurisprudence for nearly a century. If precedent were any guide, this case would be open and shut: The FTC’s removal protections, as the Court has long held and repeatedly recognized, are constitutional.

2

Humphrey’s is not just a longstanding precedent of this Court. It also reflects a “deeply rooted tradition” embraced by all three branches of Government and the American people. *PHH Corp. v. Consumer Financial Protection Bureau*, 881 F.3d 75, 177 (CADC 2018) (Kavanaugh, J., dissenting).

Such “longstanding practice” is entitled to “ ‘great weight’ ” in separation-of-powers cases like this one. On “doubtful question[s]” regarding the meaning of the Constitution, historical practice, when “deliberately established” through “legislative acts,” can “put at rest” the Constitution’s meaning. *McCulloch v. Maryland*, 4 Wheat. 316, 401(1819). That is so even for practices that “began after the founding era.” *NLRB v. Noel Canning*, 573 U.S. 513, 525 (2014). As Justice Scalia explained, constitutional interpretation should reflect “the principles adhered to, over time, by the American people, rather than those favored by the personal (and necessarily

shifting) philosophical dispositions of a majority of this Court.” *Rutan v. Republican Party of Ill.*, 497 U.S. 62, 96 (1990) (dissenting opinion). Like a “more democratic” form of *stare decisis*, respecting historical practice “promotes . . . stability, equality, and predictability.” M. McConnell, *Time, Institutions, and Interpretation*, 95 B. U. L. Rev. 1745, 1776 (2015).

These principles apply with full force here. Today’s decision addresses one of the oldest, most vigorously debated questions in constitutional law. Fifty years before *Humphrey’s* was decided, Congress and the President began to reach a settled answer to that question, at least as to multimember agencies like the FTC. In 1887, as the railroads grew in strength across the American economy, Congress responded by creating the Interstate Commerce Commission (ICC), a powerful new agency with five Commissioners, appointed by the President by and with the consent of the Senate, who were removable only “for inefficiency, neglect of duty, or malfeasance in office.” Three years later, Congress established the nine-member Board of General Appraisers to regulate American customs and granted it the same form of removal protection. See A. Bamzai, Taft, Frankfurter, and the First Presidential For-Cause Removal, 52 U. Rich. L. Rev. 691, 694–695 (2018) (describing this Board as “one of the most powerful entities within the federal government” at the time). The Federal Reserve Board followed with similar removal protections in 1913. The next year, Congress created the FTC with removal protections aimed at ensuring “a continuous policy,” “free from the effect of . . . changing [White House] incumbency.” 51 Cong. Rec. 10376 (1914).

. . . Today, dozens of agencies are headed by commissioners or board members removable only for cause. Thus, unlike in other recent cases, in which the Court considered agencies that it deemed “historical anomal[ies]” with “no foothold in history or tradition,” here history and tradition point in the opposite direction.

Congress, moreover, has taken this action not only with the Executive Branch’s “acquiesce[nce],” but also with the active participation of Presidents across the ideological spectrum. President Lincoln, even before the creation of the ICC in 1887, “asked Congress to establish” a Comptroller of the Currency and then signed the bill enacting that office into law even though it restricted the President’s power to remove the Comptroller. In fact, other than *Humphrey’s* own removal, the Government struggles to find any Presidential objections to, let alone repudiations of, for-cause removal protections like the FTC’s since they came into existence in the late 1800s. Even if *Humphrey’s* had never been decided, this longstanding practice, jointly undertaken by Congresses and Presidents, should be entitled to significant weight.

The majority’s only response is *INS v. Chadha*, 462 U.S. 919, 103 S.Ct. 2764, 77 L.Ed.2d 317 (1983), which held unconstitutional a 50-year-old procedure by which a single House of Congress could override an executive action. *Chadha*, however, is no model for today’s decision. For one thing, *Chadha* did not involve a practice that had been repeatedly approved by this Court for nearly a century. Moreover, *Chadha* rested on “[e]xplicit and unambiguous provisions of the Constitution” (specifically, Article I’s bicameralism and presentment requirements) in disapproving the challenged practice. The majority here, by contrast, identifies no constitutional provision referencing or requiring an unfettered removal power. Instead, it rests heavily on structural inferences, legislative inaction, congressional debates, legal commentary, and private correspondence. Thus, unlike *Chadha*, this case does not ask whether 50 years of practice can overcome plain constitutional text. It asks whether the Constitution privileges the majority’s flawed historical account as the final word on the subject, impervious to more than a century of later historical development.

The answer is no. Although the majority suggests that its view reflects a settled construction of the Constitution, the opposite is true. For more than a century, the Nation has firmly rejected the majority's view and has recognized that Congress, not this Court, has primary say over whether multimember commissions like the FTC should have some insulation from direct Presidential control. It is thus the majority, not *Humphrey's* or the FTC, that improperly "transform[s] the 'established practice' of the political branches."

B

Ninety years of precedent and 140 years of consistent political practice should have been more than enough to resolve this case. They are not enough, however, for the majority. Instead, the majority disregards "a venerable and accepted tradition" after placing it "on the examining table" and "scrutiniz[ing] its conformity to" the majority's own "abstract" theory of unitary executive control. *Rutan*, 497 U.S. 62, at 95–96 (Scalia, J., dissenting).

. . . Until 2010, this Court had generally allowed Congress to impose reasonable limits on the President's default power to remove Executive Branch officials if doing so did not impair his ability to perform his constitutional duties. See *Free Enterprise Fund*, 561 U.S. at 515–516, 532–533, 130 S.Ct. 3138 (Breyer, J., dissenting). Recently, however, the Court has seized the issue from the political branches by fashioning a "general rule" of mandatory, illimitable at-will Presidential removal. From the start, the majority's theory rested on shaky ground. Over time, its arguments have grown weaker still, as historical evidence has undermined key pillars of its theory. Today, the Court faced a choice: plow ahead, or acknowledge that the foundations on which the "general rule" of illimitable removal power rests are less stable than the Court has previously asserted. Unfortunately, the Court repeats and expands upon several prior errors that require correction.

1

Beginning at the founding, there is no evidence that those who shaped or ratified the Constitution adopted the majority's general rule of at-will removal. Indeed, the Court has long noted that, for the most part, "[t]he Constitution is silent with respect to the power of removal from office, where the tenure is not fixed." *Ex parte Hennen*, 13 Pet. 230, 258(1839). The one exception, and only explicit removal power granted in the Constitution, is for impeachment of the "President, Vice President, and all Civil Officers," a power placed in Congress's hands, not the President's.

Still, the majority begins by claiming that its theory of Presidential removal comes from Article II's "vest[ing of] '[t]he executive Power' " in the President. That assertion begs the question. Does the "executive Power," in fact, contain an illimitable removal power beyond Congress's power to "establis[h] by Law" certain offices, as "necessary and proper" to structure the Executive Branch? After all, agencies like the FTC would not even exist if not for Congress's exercise of its Article I power to create them.

There is little to suggest that "executive Power," as understood at the time of the founding, was as capacious as the Court today asserts. The powers held by the English Crown and state governors before ratification did not include a removal power that the legislature could not modify. Instead, Parliament often restricted the Crown's ability to remove even high-level royal officers, and States with vesting clauses like the Constitution's similarly allowed for limits on gubernatorial removal powers. Recent, post-*Seila Law* scholarship overwhelmingly confirms this point.⁵

Nor is there evidence that the Constitution was intended to give the President more expansive removal powers than those enjoyed by the Crown. For good reason: Doing so would have been inconsistent with the Constitution's very foundation. The Framers "never intended" to

give the President “the complete set of powers” that the English Crown held, let alone more. C. Chabot, *Interring the Unitary Executive*, 98 *Notre Dame L. Rev.* 129, 140 (2022) (Chabot). They carefully parsed the “ ‘royal prerogative[s]’ ” and assigned many, including the power of office creation, to Congress.

Removal also “was not discussed in the Constitutional Convention,” *Myers v. United States*, 272 U.S. 52, 109–110 (1926), making an expansion of preratification executive power unlikely. Alexander Hamilton, then writing to support the States’ ratification of the Constitution, explained that because the power to remove traditionally followed the power to appoint, “[t]he consent of [the Senate] would be necessary to displace as well as to appoint.” *The Federalist* No. 77, p. 458 (C. Rossiter & C. Kesler eds. 1999). This was a selling point for the Constitution, as it meant that “[a] change of the [President] would not occasion so violent or so general a revolution in the officers of the government as might be expected if he were the sole disposer of offices.” Madison also explained that “[t]he tenure of the ministerial offices, generally, will be a subject of legal regulation, conformably to the reason of the case and the example of the State constitutions.”

The Constitution may have been intended, as the majority argues at length, to “forg[e] a new path,” in contrast to some state governments at the time, by “opting for one President” and not a “ ‘committee-style’ ” Presidency. This new path, however, does not lead where the majority wishes to go. Whether executive power vests in a single President or a council, the question remains whether the Vesting Clause forecloses any limitations on that person’s (or body’s) power to remove subordinate officials. For proof, look no further than Hamilton, who certainly agreed that executive power ought to be “placed in a ‘single hand.’ ” Yet Hamilton also saw this choice as entirely compatible with his view that “[t]he consent of “ the Senate would be necessary “to displace as well as to appoint” officers. *The Federalist* No. 77, at 458 (Rossiter & Kessler eds. 1999). He plainly did not view “the power to remove at will [a]s a necessary corollary of the Constitution’s design,” and the majority is wrong to assume that a unitary Presidency implies an unlimited removal power.

The majority relatedly places undue weight on the notion that “ ‘[t]he power of appointing and removing executive officers [is] inherent in [the] Executive.’ ” Under the Constitution, the President does not have unlimited appointment powers either. His power is to “nominate”; only “by and with the Advice and Consent of the Senate” may he “appoint” the “Officers of the United States.” Art. II, § 2, cl. 2. What is more, the President can appoint officers only to offices “established by Law”—that is, by Congress. Any link between appointment and removal thus undermines the existence of any inherent illimitable executive removal power. Given that the Constitution did not grant the President alone an illimitable power to appoint, it is all the less likely that it silently vested in the President an unbounded power to remove.

Nor does the Take Care Clause serve as a plausible source for the expansive removal power the majority posits. “[T]he provision—‘he shall take Care that the Laws be faithfully executed’—speaks of duty, not power.” As recent scholarship has explained, “ ‘[f]aithful execution’ was proto-fiduciary legal language from centuries of English law that limited the discretion of executive officials” and did “not expan[d] their power.” J. Shugerman, *The Misuse of Ratification-Era Sources by Unitary Executive Theorists*, 58 *U. Mich. J. L. Reform* 591, 603–604 (2025). At-will removal might be one good way of fulfilling those duties. There is no evidence, however, that anyone understood the Take Care Clause at or near the founding to imply a mandatory, inflexible rule of at-will removal that Congress could never modify.

In sum, nothing in the text of the Constitution, as understood at the time of the founding by those who ratified it, suggests the illimitable removal power the Court today endorses. The

majority can shut its eyes to this evidence and point back to its past mistakes as support for the new ones of today. To the extent “ ‘[o]riginal history’ “ is seen as “generally dispositive,” however, this background should have prevented the Court from continuing to build on the uncertain foundation of a general rule of illimitable Presidential removal.

2

The majority quibbles with some of the evidence discussed above, but in the end cites nothing from the ratification debates or the Constitution’s text endorsing its view of unbounded removal power. Instead, the majority rests mostly on postratification commentary and congressional inaction. On this score, though, the majority also comes up short. Presidential removal has long evoked strong, conflicting views from American political leaders, but the available evidence from 1789 through the end of the 19th century reflects that the political branches have long believed, and acted upon the belief, that Congress has the power to set limits on the President’s removal authority and that the President was not free to flout such limits when enacted.

a

Starting where the majority starts, the debates of the First Congress over the removal process for early department heads (which culminated in the “Decision of 1789”) in no way resolve the question presented here. . . . The House in 1789 did not address whether Congress could place limits on the President’s power to remove; it debated whether the President could remove officers *at all* without Senate consent. “[T]he great question” in 1789 “was whether the removal was to be by the President alone, or with the concurrence of the Senate.” Some, as the majority explains, believed (as Hamilton did) that the Constitution required Senate consent for all removals; another group believed that Congress could choose whether to give the Senate a say; and a third believed the Constitution prohibited all Senate involvement in the removal process (outside of impeachment).

The one “ ‘[d]ecision’ “ that emerged from this debate was that “a congressional role in the removal process was rejected.” *Bowsher v. Synar*, 478 U.S. 714, 723 (1986). . . . [N]early every scholar to have studied this episode, even those broadly supportive of the majority’s view, has come to agree that “the Decision of 1789 did not endorse the view that Congress lacked authority to modify the Constitution’s grant of removal power to the President.” S. Prakash, *New Light on the Decision of 1789*, 91 Cornell L. Rev. 1021, 1073 (2006); see J. Manning, *Separation of Powers as Ordinary Interpretation*, 124 Harv. L. Rev. 1939, 1964–1965, n. 135 (2011). Instead, Congress in 1789 left that question to later generations.

Fumbling for a response, the majority asserts that there is no constitutional difference between a rule against congressional participation in removals, on the one hand, and a rule against tenure protections, on the other. That is not how the Court has understood matters. The Court has long distinguished between impermissible efforts by Congress to “reserve for itself the power of removal of an officer charged with the execution of the laws except by impeachment” (the issue decided in 1789), and the permissible “power of Congress to limit the President’s powers of removal of a” principal officer. . . .

The majority also compares the President’s removal power to the pardon and veto powers, suggesting that once Congress rejected the Senate’s role in removals, that power became “as much outside Congress’s control as” these other powers and so now “ ‘cannot be modified, abridged, or diminished by the Congress.’ “ *Schick v. Reed*, 419 U.S. 256, 266, 95 S.Ct. 379, 42 L.Ed.2d 430 (1974). The comparison is inapt. *Schick*’s conclusion that the pardon power is not subject to modification by Congress rested on the “history of the English pardoning power,” the

text of the Constitution, and “unbroken practice since 1790.” As explained throughout this opinion, the majority’s version of the removal power, by contrast, draws no support from any of those sources. The majority’s rule breaks from English practice; it derives from no constitutional text speaking of a Presidential removal power (instead, it is Congress that has power over office creation); and it is inconsistent with the bulk of the American historical tradition.

b

The majority attempts to shore up its view of the Decision of 1789 with commentary from the years that followed, but several of its own sources show its errors. The first slew of citations shows only that Senate consent was unnecessary for removal. The debate that was, in James Kent’s words, “firmly and definitively settled” in 1789, was not whether at-will removal was constitutionally required, as the majority suggests; it was whether “participation in [the removal] authority by the senate” was necessary or permitted. Joseph Story confirmed that the decision in which “[t]he public . . . acquiesced” was Congress’s “affirm[ance] of the power of removal in the [P]resident, without any co-operation of the [S]enate.” Daniel Webster, too, decried the Decision of 1789 as wrongly allowing the President to remove independently, rather than “concurrently” with the Senate. Contrary to the majority, even by 1835, Webster still “believe[d] it to be within the just power of Congress to reverse the decision of 1789.”

The power of the President to remove without Senate consent does not, however, mean that Congress was forbidden from placing any restraints on that power. Even Madison seems to have agreed. In 1789, he argued that for officers who “partak[e] strongly of the judicial character,” “there may be strong reasons why an officer of this kind should not hold his office at the pleasure of the Executive [B]ranch.” Others thought similarly. Asked by President Monroe whether at-will removal was permitted without explicit statutory authorization, Attorney General William Wirt answered in the affirmative, but only because “[w]henever Congress intend[s] a more permanent tenure . . . they take care to express that intention clearly and explicitly.” 1 Op. Atty. Gen. 212, 213 (1818). This shows both that Monroe did not assume an at-will removal power and that Wirt believed it could be curtailed.

Story did note, in 1833, that Congress had until then generally left the President free to remove officers at will. It is unclear, however, if he believed Congress could provide more durable tenures of office. As the majority observes, Story suggested in a footnote that the vote in 1789 “seems to have expressed the sense of the legislature, that the power of removal by the executive could not be abridged by the legislature.” On the prior page, though, Story identified, as an open question, “whether congress can give any duration of office . . . not subject to the exercise of this power of removal.” Given Story’s view that the “vote finally taken” in 1789 was merely “affirmative of the power of removal in the president, without any co-operation of the senate,” it is most likely that the “sense of the legislature” described in his footnote was the view that Congress could not insert itself into removal decisions by requiring Senate consent. The majority thus mischaracterizes Story when it attempts to enlist his equivocal presentation of the issues as an authoritative endorsement of its position.

Webster was much clearer. In 1835, “proceed[ing] upon the admission that [the President’s power to remove without Senate consent] does at present exist,” he urged that Congress nonetheless retained the authority to “regulat[e] . . . the tenure of office.” 1835 Debates 468. In his view, “no one could doubt [the] constitutional validity” of a law “declaring that district attorneys, or collectors of customs,” could be “removed [only] on conviction for misbehaviour,” or even of an “unwise” law imposing a similar removal restriction on “the Attorney General, or the Secretary of State.” He was not alone. Henry Clay and John C. Calhoun, often rivals to each other and to

Webster, also agreed: Clay argued at length that “the legislative authority is competent to regulate the exercise of the power of dismissal” (that is, removal), and Calhoun confessed that, although he had once believed the issue settled in favor of the President’s power to remove, he had changed his mind and was “forced to conclude that the power of dismissing is not lodged in the President, but is subject to be controlled and regulated by Congress.”

Far from “settled” in 1789, these continuing discussions show that the removal issue remained an open, contested question long after the founding. See, *e.g.*, *Hennen*, 13 Pet. at 259 (describing the “power of removal” as “a subject much disputed, and upon which a great diversity of opinion was entertained in the early history of this government”).

C

Even as the President’s ability to remove executive officers was the subject of spirited debate in the early republic, limitations on Presidential removal nevertheless were enacted. The majority is correct that Presidents generally “utilized their removal power” when not limited by law, but the 19th-century history of Presidential removal is not as absolute as the majority suggests.

To start, the First Congress itself created administrative bodies that, although not identical to agencies like the FTC, enjoyed significant independence in ways that undermine the majority’s simplistic history of uniform at-will removal. For instance, in 1790 Congress enacted (and President Washington signed) a law creating the Sinking Fund Commission, a five-member agency responsible for stabilizing the Nation’s debt. See Act of Aug. 12, 1790, 1 Stat. 186; Chabot 172–173. Three Cabinet Secretaries, the Vice President, and the Chief Justice headed the Commission, and the latter two could not be removed by the President—making the body at least semi-independent. It is true that the other three members were removable at will, but the independence of some members meant that Presidential control of the fund was not complete. This structure did not stand alone: In 1790, Congress included the Chief Justice as a member of the Mint Board, again allowing an independent individual to carry out important Treasury functions and partake in the exercise of executive power.

Nor was this the only way in which the First Congress legislated to achieve agency independence. It also established the Revolutionary War Debt Commission: a board of “three commissioners” created “to settle the accounts between the United States, and the individual states,” whose decisions would be “final and conclusive” without further review. Act of Aug. 5, 1790, ch. 38, 1 Stat. 178. Hamilton would later describe the Commission as made up of “distinct and Independent Officers.” 16 Papers of Alexander Hamilton 145 (H. Syrett ed. 1972). The majority correctly notes that the statute did not expressly speak of removal. It did, however, specify that the Commissioners would “continue” in office “until the first day of July [1792].” 1 Stat. 179. Scholarship has recently shown, consistent with precedent, that at the founding, such fixed-term tenures were broadly understood to preclude removal “before the end of th[e] ter[m].” *Manners & Menand* 5. On this understanding, the Commissioners truly were, as Hamilton claimed, independent.

As the years went by, Congress continued to implement forms of tenure protection. In 1791 and then 1816, it created the First and Second Banks of the United States, the former run by directors accountable only to private stockholders and the latter with only 5 (out of 25 total) removable directors. In 1820, it passed a law making clear that a wide swath of executive officials “shall be appointed for the term of four years, but shall be removable from office at pleasure”—with the use of “but” suggesting that the 4-year fixed-term appointment otherwise would not have permitted at-will removal. Act of May 15, 1820, ch. 102, 3 Stat. 582. In 1867, Congress enacted the Tenure of Office Act, which (most recognize today) overstepped by requiring Senate consent

to the removals of many officers until its repeal in 1887. See Act of Mar. 2, 1867, ch. 154, 14 Stat. 430. Even so, “the two-decade-long existence of the Tenure of Office Act reveals the 19th-century political system’s comfort with expansive restrictions on presidential removal.”

Finally, in 1887, Congress created the ICC with removal protections that would later serve as the template for those of many other agencies, including the Federal Reserve and the FTC. For the next century and a half, that model would go on to be embraced by Congress and Presidents alike, quickly built upon, and ultimately ratified by this Court’s decision in *Humphrey’s*.

Against this backdrop, the majority at most can point to the paucity of many removal protections enacted during most of the 19th century. The majority’s view thus appears to be that Congress’s inaction, in declining to impose provisions identical to the FTC’s until 1887, forfeited its ability ever to do so in the future. If that is how the majority sees things, then it is the majority that endorses an unsupported, use-it-or-lose-it “adverse possession” theory of constitutional powers.

3

Even before *Humphrey’s*, the Court’s precedents likewise made clear that it is the majority’s radical theory of unitary executive power, not the sustained practice of the political branches over the centuries, that is out of step with traditional notions of separation of powers in this country.

No case before the turn of the 20th century suggested that the President’s removal power was not regulable by Congress. In *Marbury v. Madison*, 1 Cranch 137, 2 L.Ed. 60 (1803), Chief Justice Marshall approvingly recognized that an office with a 5-year fixed-term tenure was “not removable at the will of the executive” and thus was “independent of the executive.” *Id.*, at 162, 172. That protection meant that, “having once made [a fixed-term] appointment, [the President’s] power over the office [was] terminated in all cases.” Indeed, the historic dispute in that case, over whether Marbury had been commissioned to his office as a justice of the peace, would have been academic if President Jefferson could have removed Marbury at pleasure once commissioned. It mattered only if Marbury, at that point, was safe from removal.

The majority cites *Hennen*, 13 Pet. 230, which in 1839 addressed a territorial court’s power to remove a clerk of that court. In discussing background removal principles supporting such power, *Hennen* recognized that the power to remove Presidential appointees was generally “vested in the President alone,” *i.e.*, “the concurrence of the Senate” was not required. It also made clear, however, that the tenure of offices could vary if “limited by law.” A case the majority ignores, *United States v. Perkins*, 116 U.S. 483 (1886), held that Congress “ ‘no doubt’ “ may “ ‘limit and restrict the power of removal’ “ as to inferior officers and expressly left open the question whether Congress may do the same as to principal officers. The majority also cites *Parsons v. United States*, 167 U.S. 324 (1897), which addressed whether Congress had, in fact, granted a district attorney an unremovable tenure in office. *Id.*, at 342–343. *Parsons* carries little weight here because the Court there construed the statute at issue “to concede to the President the power of removal,” making it “unnecessary” to decide any “question of constitutional power” regarding removals. In short, the 19th century closed with no judicial endorsement of an illimitable removal power.

That brings us to *Myers*, authored by former-President and then-Chief Justice Taft. If *Myers* is the “best” support for the majority’s position, its theory is a castle built on sand. For one thing, as the majority admits, *Myers* did not address for-cause removal protection; the challenged statute instead required Senate consent to removal. Thus, despite the grand pretensions of the opinion, it decided no more than that the President could “remove a postmaster of the first class, without the advice and consent of the Senate.”

Even in doing so, *Myers* managed to get a great many things wrong. Its expansive reading of Article II lacked any mooring in text or preratification history, conceding the lack of any “express provision respecting removals in the Constitution” or “discuss[ion] in the Constitutional Convention” and instead leaping to the Decision of 1789. Further, “[m]ost contemporary scholars agree that Taft’s account of the Decision of 1789 is tendentious and historically inaccurate”; in *Myers*’s own time, moreover, “scholars and jurists attacked its historical arguments.” A. Katz & N. Rosenblum, *Becoming the Administrator-in-Chief*, 123 *Colum. L. Rev.* 2153, 2239, and nn. 642–643 (2023) (collecting sources). In addition, *Myers*’s claim that there was “no act of Congress . . . at variance” with its view of an illimitable removal power for the Nation’s first 74 years, see 272 U.S. at 163, 47 S.Ct. 21, is at best incomplete. That is not to mention the *Myers* dissenters (Justices Holmes, Brandeis, and McReynolds), who demonstrated at great length the majority’s many other errors.

Perhaps for those reasons, and despite the majority’s contrary presentation, it is *Myers* that had little impact when it was decided and has only waned in influence since. Within a decade, and with four Justices from the *Myers* majority still on the Court, the Court in *Humphrey*’s “reexamined the precedents referred to in the *Myers* case, and f[ou]nd nothing in them to justify a conclusion contrary to” the one it reached as to the FTC. The Court unanimously abandoned *Myers*’s expansive dicta, approving only “the narrow point actually decided” on the removability of postmasters “without the advice and consent of the Senate.” All other statements “out of harmony” with *Humphrey*’s were “disapproved.”

For decades after that, the Court continued to cabin *Myers* to its “essence,” explaining that it stands only for the proposition that “Congress [may not] ‘dra[w] to itself’ “ the power to remove, and says nothing about provisions merely “limit[ing] the President’s powers of removal,” *Bowsher*, 478 U.S. at 724. As Justice Frankfurter put it in *Wiener*, *Myers*’s “assumption” of “the President’s inherent constitutional power to remove officials, no matter what the relation of the executive to the discharge of their duties and no matter what restrictions Congress may have imposed regarding the nature of their tenure,” was “short-lived.” The majority is thus free to complain about the “shabby treatment” *Myers* has received, but it has decades of precedent to blame for that, not this dissent. From *Humphrey*’s to *Wiener* to *Bowsher* to *Morrison*, *Myers* had been left on the sidelines long before today, at least until the Court reinvigorated a maximalist view of Presidential power a few years ago. *Humphrey*’s approval of removal protections for agencies like the FTC, to the contrary, has supplied the rule that governed the creation of the modern state over the course of the following century.

4

The majority thus has very little support in text, history, or precedent. What it does have is a theory. As the majority sees things, “the buck stops” with the President, who holds all executive power and thus can be “ ‘blame[d]’ “ or held “ ‘responsib[le]’ “ for all executive conduct. Yet the President cannot “execute the laws alone and unaided.” To ensure that the President can carry out his job and remain responsible for all exercises of executive power, the majority says, his inferiors must “remain accountable to [him].” The only way for that accountability to exist, according to the majority, is for “those officers [to] be removable by the President” at will, for any reason or no reason at all.

Responsiveness and responsibility are certainly valuable, but they are not the only values countenanced by our Constitution. Others are the continuity and stability of Government, see, *e.g.*, *The Federalist* No. 77, at 458 (explaining that limitations on removal would prevent the “violent or . . . general . . . revolution in the officers of the government” at every election), and the

impartiality and fair administration of justice, see, *e.g.*, 1 Annals of Cong. 612 (Madison) (arguing that some executive officials with judicial functions “ought to hold . . . office by such a tenure as will make him responsible to the public generally,” not just the President). Depending on the situation, one value or another may be more or less important. Today, the majority places accountability to the President above all else.

Yet the accountability prized by the majority is not an unalloyed good. From the start, Americans distrusted the “arbitrary authority” that could result from a broad removal power, citing the “baleful influence of the royal prerogative when officers h[e]ld their commission during the pleasure of the Crown.” Story saw unchecked removal authority as carrying a “monarchical and arbitrary” danger, risking the “conver[sion of] all the officers of the country into the mere tools and creatures of the president.” He also feared that unrestrained Presidential removal would “deter [those] of high and honourable minds from engaging in the public service.” Webster, too, observed the “obvious” risk that such a power would breed “complaisance,” “indiscriminate support of executive measures,” “pliant subserviency, and gross adulation” in place of “patriotic labors,” “toils for the public good,” “independence, and public spirit.”

Balancing all these concerns, and the tradeoffs they entail, has historically fallen to those who know the most about them: the political branches. This Court, on the other hand, has proven itself time and again to be the least competent branch to make these judgments. Consider just one (highly salient) example: the Court’s fixation on removal. As others have explained, a “wealth of features” other than at-will removal in fact determines an agency’s responsiveness to the President. The President often names the Chair. He also, through the White House Office of Management and Budget, can “frequently” use the budget process to “ ‘influence [agencies’] policies.’ “ Even with the removal protections the Court today holds unconstitutional, the President can still remove an FTC Commissioner who fails to perform her duties adequately or commits malfeasance in office.

In sum, agencies like the FTC do enjoy some measure of independence by virtue of removal protections, but they also remain accountable in other ways. No one can seriously doubt, for instance, that the FTC’s priorities shifted between the Bush, Obama, Trump, and Biden administrations. There are also a variety of ways in which the President (and Congress) remain accountable for the conduct of executive officials, even without at-will removal. . . . Congress’s design (approved by many Presidents over decades) balances that influence with other values equally cognizable under the Constitution. The majority’s rigid, inflexible rule goes badly astray by declaring one side of this balance constitutionally irrelevant.

III

Nothing in the text, history, or values of the Constitution shows that *Humphrey’s* was wrong or that FTC Commissioners cannot enjoy for-cause removal protection. Yet even if the majority were right about all of that, it still would not be enough to justify today’s destabilizing decision.

The reason, of course, is *stare decisis*, which the majority all but disregards. . . . At bottom, this doctrine recognizes that, even if today’s Justices might decide an issue differently than their predecessors did, greater institutional values usually counsel “sticking to some wrong decisions.”

Along every metric that the Court usually considers in this context, *Humphrey’s* should have survived. *Humphrey’s* is not wrong, let alone egregiously so. The majority hardly “even acknowledge[s] the important reliance interests that [*Humphrey’s*] ha[s] generated.” It “discards a known, workable, and predictable standard in favor of something novel and probably far more complicated,” with revolutionary consequences for our Government. In the end, it is the majority’s

rule, not *Humphrey's*, that “short-circuit[s] the democratic process” by eliminating an option for the political branches that has existed at least since *Humphrey's* was decided in 1935.

A

Begin with a consideration the majority all but ignores: the tremendous reliance interests engendered by *Humphrey's*. . . .For the better part of the last century, *Humphrey's* has guided Congress in constructing the modern system of Government, including dozens of independent agencies that remain central to protecting the Nation's economy, health, safety, and more. At times, Congress has done so in express reliance upon the rule stated in *Humphrey's*. . . .

Independence was centrally important to Congress in creating these agencies. “[I]t was essential that the[se] commission[s]” were not “open to the suspicion of partisan direction” and thus possessed the independence “necessary to the effective and fair administration of the law.” In creating and empowering administrative agencies throughout the late-19th and 20th centuries, Congress recognized not only the need for efficient and effective regulation of the increasingly complex American economy, but also the risks of concentrating such power in the hands of the President with no check against the influence of partisan control. For the FTC, “[t]he two ideas, a commission and independence for the commission, were inextricably bound together. At no point was it proposed that a commission ought to be set up unless it be independent.” R. Cushman, *The Independent Regulatory Commissions* 188 (1941). For the NLRB, which was patterned expressly on the FTC, “complete independence was necessary to insure complete impartiality.” In hearings considering new powers to be granted to the Federal Reserve Board, witnesses emphasized the need for “protective safeguards of the strongest character” against “ ‘political control’ “ and the “danger[s]” of allowing the Federal Reserve to become “a political instrumentality of the party in power.” Hearings on S. 1715, at 687, 998.

The checks the political branches devised—bipartisan membership requirements, the multimember structure, lengthy fixed terms, and for-cause removal protections—struck an essential balance in this respect. Creating these agencies under the President gave the Executive Branch the tools needed to execute the law and accomplish the modern work of Government, preserving “ample authority” for the President to ensure the “competen[t] perform[ance]” of the officers leading the agency. At the same time, ensuring expertise, bipartisanship, and limiting the causes of removal guarded against these new agencies becoming mere political instruments, which could be turned against political enemies with one hand and used to grant favors to allies with the other.

Indeed, without removal protections, many of the other features of these agencies' structures risk losing their force. Bipartisan-appointment requirements can easily be evaded simply by firing all Commissioners of the opposite party. Just look at the FTC today. Lengthy fixed terms, aimed at ensuring stability, continuity, and the development of expertise within an agency, can also be cut short at the President's will. Again, look at today's FTC. With the most extreme exercises of at-will removal, the multimember structure itself could be eliminated, by executive fiat, with sufficient arbitrary firings to winnow a commission down to a sole remaining chair. The very existence of independent commissions like the FTC thus depended on (and Congress's decision to create the agencies relied upon) the premise that these agencies would exist at some remove from partisan politics and enjoy the removal protections necessary to achieve that goal.

Today's decision profoundly undermines this reliance and, as a result, undercuts one side of the balance that the political branches struck. Put simply, today the majority reshapes our Government. Dozens of independent commissions are now likely to become purely executive

agencies, shifting tremendous power over broad swaths of American life into the President's hands
....

Seldom, if ever, has this Court worked such a profound bait and switch on a coequal branch: For more than 90 years, Congress believed, with this Court's express approval, that it was allowed to create a workable Government, including by granting certain agencies tasked with certain responsibilities some independence from Presidential control. In rejecting that project, after decades of promising the political branches that structures like the FTC's were permissible, the Court creates an Executive Branch that Congress never dreamed of establishing and that it now has little hope of ever reining in. The concurrence acknowledges the "real risks" implicated by the Court's abandonment of *Humphrey's*.

The majority's responses fail across the board. It first asserts that congressional reliance "is relevant only in the context of severability," but this Court has been clear that "[s]tare decisis has added force when the legislature, in the public sphere, . . . ha[s] acted in reliance upon a previous decision." None of the majority's severability cases overruled any precedent, and so say nothing about the role of congressional reliance in the *stare decisis* analysis. The majority also suggests that Congress's reliance interests are somehow not " 'legitimate' " here because *Humphrey's* recognized congressional power at the President's expense. This assertion is perplexing. *Humphrey's* endorsed Congress's authority to create agencies "to carry into effect legislative policies embodied in the statute," with "independence against [the President's] will." It was that holding on which Congress has reasonably relied. If the majority means to say that this reliance was improper because *Humphrey's* was wrong, it gets *stare decisis* backwards. The doctrine's entire point is to recognize that greater institutional values can support adhering to past decisions, even if a later majority might think them mistaken.

Finally, and equally important, the reliance interests here are not limited to Congress. Ordinary Americans and regulated firms alike have organized their affairs understanding that some Government decisions will depend not on political favoritism or partisan advantage (or at least not only on those considerations), but on expertise, adherence to law, judgment, and the public good. Today, by demanding unmediated, unmitigated Presidential control of agency decisionmaking, the majority upends all of that. . . . [T]oday's majority has come to believe that the American people are better off without independent agencies, it does not matter how much anyone has relied on that arrangement.

B 1

The majority's assertion that *Humphrey's* has proved unworkable also blinks reality. . . . [F]or over 90 years Congress has legislated, and the Government ably functioned, against the "commonly understood" rule that heads of certain multimember agencies can enjoy modest tenure protections from at-will Presidential removal. . . . By and large, . . . these agencies follow a remarkably consistent pattern: multimember commissions, with a chair selected by the President, often with bipartisan membership requirements, sometimes with a background-expertise requirement, and, often, with a restriction permitting removal only "for cause" or for specified causes. So too do these agencies generally carry out functions like the FTC's: rulemaking, in-house adjudications, investigations, and occasional enforcement actions in court. In establishing agencies like the FTC, Congress has thus shown little difficulty applying the rule the majority today finds too murky.

Nor has this Court had trouble applying *Humphrey's* over the course of the past century. It is true that, at times over those decades, disputes have arisen over the principles at play in

Humphrey's. That is to be expected for any legal doctrine. If anything, however, those disputes have been remarkably few and far between. As to multimember commissions, this Court has returned to the issue only once, making clear that “[t]he philosophy of *Humphrey's*” plainly supported protections for members of the War Claims Commission. *Wiener*, 357 U.S. at 356. The majority claims that this paucity of cases marks a “retrea[t] from *Humphrey's*.” The reality, however, is that the Court has seldom needed to address these issues because disputes have seldom arisen. That is so even though Congress all the while, and with minimal objection (and no vetoes) from over a dozen Presidents, has constructed the Executive Branch in reliance upon *Humphrey's* and its progeny.

No other decisions of this Court, as to other agency structures, suggest any inability to police the bounds established by *Humphrey's*. In fact, they show the opposite. *Morrison* accepted and broadened *Humphrey's* functionalist approach, clarifying only that the exercise is not meant to “define rigid categories” of officials who exercise executive power or perform executive functions, “but to ensure that Congress does not interfere with the President’s” constitutional duties. As to the officer at issue in *Morrison*, the Court held that the removal protections left the President with “ample” control. *Free Enterprise Fund* recognized *Humphrey's* rule, accepted it as to the Securities and Exchange Commission (SEC), and held that a second layer of protection for a subsidiary Board (a “novel structure” never considered before) was unconstitutional. *Seila Law* also took *Humphrey's* as a given and held that a different structure (a single-director agency head) was an “almost wholly unprecedented” “historical anomaly” that fell outside *Humphrey's* scope. These conclusions were, to be sure, subject to vigorous disagreement at the time. Far from showing *Humphrey's* to be unworkable, however, those cases show how legal precedents work: They extend to some situations, but not to others, and Justices sometimes disagree about where to draw the lines. Whatever its outer limits, *Humphrey's* core holding as to the FTC and multimember bodies like it has never proven too difficult for courts to apply.

The majority points to a handful of recent lower court decisions from the past year or so that purportedly show that “no one knows how to apply *Humphrey's* in practice.” That tumult, though, is more fairly attributed to the Court’s recent emergency-docket abandonment of *Humphrey's*. When the Court fails to adhere to its own precedents in a principled manner, it is hard to expect consistency from the lower courts that must keep up with the Court’s rapidly shifting views. For decades before this Court upended the doctrine, however, *Humphrey's* was a stable, easily understood precedent of this Court.

Last, the majority takes aim at *Humphrey's* use of the terms “ ‘quasi-legislative’ ” and “ ‘quasi-judicial.’ ” “*Humphrey's*, however, did not draw these terms from thin air. They were “well-established term[s]-of-art,” recognized by figures from Madison to Taft by the time *Humphrey's* was decided. See Brief for Legal Historian N. Rosenblum et al. as *Amici Curiae* 14. Madison, recall, recognized that even executive officers may “partak[e] strongly of the judicial character” and that such officers raise distinct considerations when it comes to removal. 1 *Annals of Cong.* 612. By the early-19th century, courts, too, were using the term “ ‘quasi-judicial’ to describe the duties of specialist officers whose work bore functional and procedural similarities with that of the judiciary” and the term “quasi-legislative” to refer to functions served by “ ‘subordinate agencies’ ” tasked with filling in the details left open by general laws. The majority can feign ignorance and deem these terms devoid of meaning, but it cannot change the historical record: Independence has long been associated with, and accepted as to, executive officers who carry out functions like the FTC’s. . . .

The case for retaining *Humphrey's* becomes even stronger when compared against the majority's theory, which itself promises to unleash only chaos. With remarkable steadfastness, the majority simply refuses to explain where its theory leads or where it ends.. Although declining to consider the consequences of its decision might make it easier for the majority to cast *Humphrey's* aside, it leaves courts, agencies, and Congress with little guidance, and many new questions, on how they are supposed to assess removal questions going forward. . . .

Today's decision may . . . have major implications for inferior officers and civil-service employees, which the majority studiously ignores. The Court's precedents, to date, continue to support removal protections for such individuals. Until today, however, *Perkins* and *Humphrey's* were the "two exceptions to the President's unrestricted removal power" this Court had recognized. With one of those exceptions now wiped away, the majority's silence on the other one provides cold comfort. Nor is there much in the majority's logic that supports drawing a line at principal officers. Inferior officers (and likely many employees within the civil service) wield some executive power. Regardless of their rank, if the President cannot have such individuals removed at will, then there is a break in " 'the chain of dependence' " all the same (which, the majority emphasizes, must reach down all the way to the " 'lowest officers' "). The Government, at least, has the candor not to deny that the "logic" of its position "extends to inferior officers" and, perhaps, career civil servants, too. The majority, however, at best consigns these issues to years of future uncertainty and at worst risks the end of the employment protections that apply to members of the civil service. . . .

Perhaps most strikingly, the Court today also makes clear that, whatever the logic of its decision, there are some ad hoc historical exceptions to its totalizing view of Article II, at least for the Federal Reserve. For most agencies, the majority here says, removal protections like the FTC's make the President's job " 'impossible' " and so are unlawful. For agencies that follow in the "lineage" of the First and Second Banks of the United States, however, the Court recognizes that the Founders were acutely aware "of the calamities that could arise from even the 'suspicion' of political manipulation of monetary policy" and that they therefore "guaranteed [such agencies] independence from Presidential control." As a result, the Court holds, removal protections remain permissible (perhaps even indispensable) for agencies, including the Federal Reserve, that follow in "this tradition."

As discussed above, this is all partly right. Yes, the Founders did "kn[ow] from experience" that some Government functions "should not be subject to political interference." Yes, this tradition need not remain " 'trapped in amber' " while Congress continues to devise new agencies and structures to "manag[e] a vastly more complex economy in a vastly more complex world." What is unclear is why these principles should be limited only to agencies, like the Federal Reserve, that in some respects influence "monetary policy." . . .

These line-drawing problems are the inevitable result of the majority's ruling, yet never arose under *Humphrey's*. Today, the majority replaces 90 years of proven, workable practice with a half-baked theory of executive power that is simultaneously all encompassing yet also subject to necessary but undefined exceptions. The one thing that does appear to be clear going forward is that chaos will follow.

C

Finally, the majority suggests that *Humphrey's* has been "undermined" by later cases. That is incorrect. *Morrison* did not " 'repudiat[e]' " *Humphrey's*. It extended its holding to uphold removal protections for a distinct, inferior officer. The case that *Morrison* repudiated was *Myers*.

See 487 U.S. at 687 (rejecting “the implication of some dicta in *Myers*” that “the President’s power to remove . . . was . . . ‘all-inclusive’”). . . .

IV

Not two years ago, I wrote of a “disconcerting trend” in this Court’s cases: “When it comes to the separation of powers, this Court tells the American public and its coordinate branches that it knows best.” *SEC v. Jarkesy*, 603 U.S. 109, 201 (2024) (dissenting opinion). Matters that for centuries had been left to the political branches have been subordinated, one after another, to this recent Court’s rigid theories of how Government should operate.

The majority’s decision continuing that trend today is egregiously wrong. In this case, the Court takes one of the oldest debates in American history and decides that the six Justices in the majority, alone, ought to be the ones to settle it for all time. That decision does not just overrule precedent; it all but ignores that precedent exists. It does not just hamstring the political branches’ ability to respond to new challenges; it rewinds the clock nearly 150 years, holding that a common agency structure is, and always has been, forbidden. It is true that today’s decision does not eliminate the FTC or the many other agencies whose structures are implicated by overruling *Humphrey*’s. It is undeniable, however, that those agencies will be transformed in ways that those who created them never could have expected and actively sought to avoid, fundamentally recalibrating the balance of power in this country in the process.

Will these transformations yield the benefits, sounding in responsiveness and accountability, that the majority touts? Or will they risk placing “in the hands of a bold and designing man, of high ambition, . . . an instrument of the worst oppression,” which will “sacrific[e] every principle of independence to the will of the [President]”? 3 Story § 1533, at 390–392. Neither I, nor the majority, knows with certainty. That is exactly why the Constitution leaves decisions like this one, involving sensitive tradeoffs and difficult judgment calls, to those best positioned to make them, and then to be held accountable for doing so: the political branches.

Today, the Court discards that democratic regime in favor of one that distorts the structure of Government to fit the majority’s theory of unitary, total executive control. The result is a President who emerges with far greater power than ever before. It is a power, however, that neither the People, nor Congress, nor the Constitution bestowed upon him. In granting the President this unbridled authority, the Court upends its precedent, misconstrues our history, and sheds any pretense of judicial modesty. I respectfully dissent.

1. *Trump v. Cook and the Future of the Fed.* Under 12 U.S.C. § 242, each member of the Board of Governors of the Federal Reserve System “shall hold office for a term of fourteen years from the expiration of the term of his predecessor, unless sooner removed for cause by the President.” Notwithstanding the Trump Administration’s soon-to-be-fulfilled expectation that the Court would overturn *Humphrey’s Executor*, as it did in *Slaughter*, its lawyers also inferred from the Court’s dicta in *Trump v. Wilcox* that it would not overturn the § 242 provision that presidential dismissals could only be “for cause.” But the President, no doubt hoping to re-staff the Board with members more responsive to his hopes for lower interest rates, tried to fire Lisa Cook, an economist appointed to the Board in 2022, on the ground that, in 2021, she had fraudulently represented on a mortgage loan application that a Georgia property she planned to purchase was intended to be her primary residence, when her primary residence was elsewhere. (Subsequent newspaper reports indicated that she had checked the wrong box at one point in her application, but that the home in question was described elsewhere in the loan packet as a second home and the lender bank understood the home to be a secondary residence. Tony Romm, *What Is Lisa Cook, the Fed*

Governor, Accused of Doing? N.Y. TIMES (Jan. 21, 2026), <https://tinyurl.com/p5m6f7yw>.)

Unlike Gwynne Wilcox and Cathy Harris, however, Cook refused to treat her dismissal as being in effect, and the Board backed her continuing to serve. She successfully sought a temporary restraining order barring her dismissal on the grounds that the “cause” Trump alleged was insufficient because it had no bearing on her conduct in office and that, in any event, the statutory limitation on her removability required, under the Due Process Clause, that she be given an administrative hearing before she could be dismissed. The D.C. District Court agreed on both points. It held that the “for cause” provision in the Federal Reserve Act “extends only to concerns about the Board member’s ability to effectively and faithfully execute their statutory duties, in light of circumstances that have occurred while they are in office.” *Cook v. Trump*, 804 F. Supp. 3d 14, 26 (D.D.C. 2025). By a 2-1 vote, a panel of the D.C. Circuit declined to stay the district court order. Two judges on the panel concluded she was likely to prevail at least on her due process claim. *Cook v. Trump*, No. 25-5326, 2025 WL 2654786, at *3 (D.C. Cir. Sept. 15, 2025). In an opinion announced the same day as *Trump v. Slaughter*, the Supreme Court, by a 5-4 vote, likewise denied the administration’s request for a stay. Writing for the majority, Chief Justice Roberts stated that presidential removals under 12 U.S.C. § 242 were judicially reviewable and that Cook was entitled to at least a rudimentary hearing before being dismissed. As for the scope of “cause” for which members of the Board could be fired, Roberts wrote:

Cook argues that we should interpret “cause” to refer only to the specific causes provided in other statutes as bases “for presidential removal”—specifically, as of 1935, inefficiency, neglect of duty, malfeasance, and ineligibility. But we see no reason why that should be so. It is true, of course, that some statutes by their terms incorporate an “external body of law,” as when a statute refers generally to defenses “available by law.” That inference, however, works only if the statute actually references that body of law. The statute here does not. It refers to “cause” generally, a concept familiar to the common law. It does not refer to “causes that Congress has otherwise recognized as adequate.”

. . . [W]e need not fully demarcate the contours of “cause” today. For present purposes, it is sufficient to observe that any definition of “cause” in this context must reflect the Federal Reserve’s unique historical status and role. Like its predecessors, the Federal Reserve operates at a deliberate remove from the ordinary political process. It sets its own budget, free of congressional control. It consists in large part of privately owned (and operated) entities, namely, the regional banks. And its policies are set not only by Governors, but also by representatives of the private regional banks. Indeed, it is the Federal Reserve’s independence that allows it to pursue its mandate of “maximum employment, stable prices, and moderate long-term interest rates,” goals that may be thwarted if (to quote Hamilton) “suspicion” arose that its operations were “at the disposal of the Government,” which often may favor ephemeral short-term gains over long-term growth, Report on a National Bank 331. Not only the fact of independence but also the appearance of independence is key to the Federal Reserve’s design.

That counsels a substantial threshold for “cause.” It is true, of course, that “cause” cannot be reduced to a precise set of rules, and some close calls are inevitable. Whether “cause” for removal exists in any given situation will depend, at least in part, on the seriousness of the alleged misconduct, and the extent of any nexus that may exist to the Governor’s professional duties. The key issue is whether “[t]he cause assigned” truly “impl[ies] an unfitness for the place”—or whether it simply represents an effort to secure a “more congenial” replacement. “Our review is deferential, but we are not required to

exhibit a naiveté from which ordinary citizens are free.” *Department of Commerce v. New York*, 588 U.S. 752, 785 (2019) (internal quotation marks omitted). Without such constraints in place, any perceived or alleged misstep (past or present) could provide a ready pretext for a Governor’s removal—a fact that he would surely know, and that would surely weigh on him as he decided what to say and how to vote. Nothing could be more corrosive of the independence that Congress sought to preserve.

Trump v. Cook, 146 S. Ct. 2234, 2249–50 (2026). Even though Trump did not argue that Fed independence was unconstitutional, the majority opinion explicitly stated its disagreement with Justice Thomas’s dissent, which argued that the Fed was unconstitutional under *Slaughter*:

We disagree [with Thoomas’s position], as did “the founders of our Government and framers of our Constitution” when they “were actively participating in public affairs.” *Myers v. United States*, 272 U.S. 52, 175 (1926). They knew from experience (and Hamilton reminded them) of the calamities that could arise from even the “suspicion” of political manipulation of monetary policy. Report on a National Bank 331. So when they established the First Bank of the United States, they guaranteed its independence from Presidential control. Their successors did the same for the Second Bank. That enabled both banks to serve as the “great regulating wheel” of the early American financial system. The Federal Reserve follows in this lineage.

It is true, of course, that this tradition has not stood still; as Justice THOMAS notes, the Federal Reserve is more powerful than its predecessors, managing a vastly more complex economy in a vastly more complex world. We see no reason, however, why our central bank ought to be “trapped in amber” any more than any other aspect of our constitutional scheme. What matters is that the Federal Reserve remains “consistent with the principles that underpin” the First and Second Banks—namely, that monetary policy should not be subject to political interference. In our view, the Federal Reserve maintains the “balance struck by the founding generation” under “modern circumstances.” We thus look to history not as an end in itself, but (as we often do) to give “essential content to undefined provisions in the frame of our government.”

Id. at 2254. A footnote to the foregoing paragraph, however, adds that, though not “trapped in amber,” the permissible range of Fed designs was not infinitely elastic: “In upholding the constitutionality of the Federal Reserve as currently structured and with its existing enforcement authorities, we do not suggest that Congress could assign the Federal Reserve additional regulatory powers that are attenuated from monetary policy.” *Id.* at 2254 n.6.

Justice Kavanaugh concurred but wanted to reemphasize what he took to be the Fed’s historic pedigree: “Most importantly for constitutional purposes, the Federal Reserve follows in a distinct historical tradition of central bank independence that has long coexisted with Article II. That history of course carries great weight in Article II cases.” *Id.* at 2257 (Kavanaugh, J., concurring). Justice Jackson likewise concurred, arguing that the balance of equities alone disfavored Trump’s application to stay the order below. Justice Thomas, in a sole dissent, argued that Cook’s firing was unreviewable, that the ground asserted for her dismissal was legally sufficient, and that she was not entitled to a pre-dismissal hearing. Justice Alito, writing for himself and Justice Gorsuch, would have stayed the order below because, in his view, the lower courts were wrong as to Cook’s hearing entitlement and were mistaken in thinking “cause” had to relate to events while Cook was in office. Justice Barrett dissented on the ground that the order of the court below actually bars Trump from dismissing Cook based on the allegation of mortgage fraud,

with or without a hearing, and that forcing Trump to keep Cook in office amounts to “irreparable injury.”

On August 7, 2026, in the wake of the Supreme Court’s decision, Daniel Scavino, the White House deputy chief of staff, wrote to Cook that Trump was “considering” removing her from her position based on the allegations of mortgage fraud. As for a “hearing,” Scavino wrote: “You may provide any evidence or other supporting documentation you wish to be considered, and you may provide any argument that you wish to be considered to the President through the Director of Presidential Personnel no later than August 26, 2026.” Letter from Daniel D. Scavino to Dr. Lisa D. Cook (Aug. 5, 2026), <https://perma.cc/YL55-UF6Y>. If Trump persists in his attempt to dismiss Cook, the Supreme Court may wind up with yet another opportunity to determine both the legal scope of “cause” adequate to support dismissal and whether there is adequate factual support to remove her on whatever grounds the President might specify.

2. *Multimember v. Single-Headed Agencies*. The Supreme Court opinion voiding tenure protection for the director of the CFPB was presaged by a case decided in the D.C. Circuit, *PHH Corp. v. Consumer Fin. Prot. Bureau*, 839 F.3d 1, 26 (D.C. Cir. 2016), *reh’g en banc granted, order vacated* (Feb. 16, 2017), *on reh’g en banc*, 881 F.3d 75 (D.C. Cir. 2018). A D.C. Circuit panel opinion written by then-Judge Kavanaugh held that the structure was unconstitutional because, he argued, limitations on removal are permissible only for multi-member agencies. He went to some lengths to defend the proposition that *Humphrey’s Executor* might well be justified for multimember agencies notwithstanding his analysis regarding single-headed agencies, thus very much anticipating the Court’s reasoning in *Seila Law*. His opinion is perhaps the most robust policy defense of the independent agency structure in administrative law jurisprudence:

How do multi-member independent agencies fare better than single-Director independent agencies in protecting individual liberty? As compared to single-Director independent agencies, multi-member independent agencies help prevent arbitrary decisionmaking and abuses of power, and thereby help protect individual liberty, because they do not concentrate power in the hands of one individual. . . . In a multi-member independent agency, no single commissioner or board member possesses authority to do much of anything. Before the agency can infringe your liberty in some way — for example, initiating an enforcement action against you or issuing a rule that affects your liberty or property — a majority of commissioners must agree. That in turn makes it harder for the agency to infringe your liberty. . . . In a multi-member agency, even though each individual commissioner is not accountable to or checked by the President, each commissioner is at least still accountable to his or her fellow commissioners and needs the assent of a majority of commissioners to take significant action.

In addition, unlike single-Director independent agencies, multi-member independent agencies “can foster more deliberative decision making.” Relatedly, multi-member independent agencies benefit from diverse perspectives and different points of view among the commissioners and board members. The multiple voices and perspectives make it more likely that the costs and downsides of proposed decisions will be more fully ventilated. In short, the deliberative process and multiple viewpoints in a multi-member independent agency can help ensure that an agency does not wrongly bring an enforcement action or adopt rules that unduly infringe individual liberty.

As compared to a single-Director structure, a multi-member independent agency also helps to avoid arbitrary decisionmaking and to protect individual liberty because the multi-member structure — and its inherent requirement for compromise and consensus —

will tend to lead to decisions that are not as extreme, idiosyncratic, or otherwise off the rails. A multi-member independent agency can only go as far as the middle vote is willing to go. Conversely, under a single-Director structure, an agency's policy goals “will be subject to the whims and idiosyncratic views of a single individual.”

Relatedly, as compared to a single-Director independent agency, a multi-member independent agency provides the added benefit of “a built-in monitoring system for interests on both sides because that type of body is more likely to produce a dissent if the agency goes too far in one direction.”

Moreover, multi-member independent agencies are better structured than single-Director independent agencies to guard against “capture” of— that is, undue influence over — the independent agencies by regulated entities or interest groups, for example. . . . Capture can infringe individual liberty because capture can prevent a neutral, impartial agency assessment of what rules to issue and what enforcement actions to undertake. In a multi-member agency, however, the capturing parties “must capture a majority of the membership rather than just one individual.”

839 F.3d at 26-28.

As it happens, the CFPB successfully petitioned for en banc review, and the full court vacated the Kavanaugh panel decision by a vote of 10-3, with Kavanaugh, of course, among the dissenters. Should Justice Kavanaugh have heeded Judge Kavanaugh’s insights and argued for a bright-line differentiation between single-headed and multimember agencies under Article II? After all, in *Myers*, Chief Justice Taft’s dicta appeared to give Congress a choice with regard to *inferior* officers: Put administrative functions in the hands of someone the president appoints and live with providing the president with removal power. Or put those functions in an inferior officer appointed by an agency head and impose whatever removal conditions you, Congress, think appropriate. One of your authors argued that the Roberts Court could have given Congress an analogous choice: Put an agency in the control of a single director and live with unqualified Presidential removal power, or give the agency multimember leadership and protect its principal officers against at-will discharge, if Congress so prefers. Peter M. Shane, *Save Humphrey’s Executor. Save the Supreme Court (Sort Of)*, WASH. MONTHLY (Jan. 2, 2026), <https://washingtonmonthly.com/2026/01/02/save-humphreys-executor-supreme-court-independent-agencies/>. What would have been the advantages or disadvantages of such an approach?

3. *Any Other “Distinct Historical Traditions?”* The Court’s contention in *Cook* that the Fed draws constitutional legitimacy through its historical resonance in the First and Second Banks of the United States is more than a little puzzling. As Justice Thomas wrote in his dissent:

When President Wilson signed the Federal Reserve Act in 1913, few would have described it as following in a “long tradition.” Before the Federal Reserve Act, the American tradition of central banking consisted mainly of the First and Second Banks of the United States, two short-lived corporations. Congress chartered the First and Second Banks of the United States to provide banking services to the Federal Government. These banks possessed no sovereign power. “Unlike modern central banks,” the First and Second Banks of the United States “did not officially set monetary policy” and did not “regulate, hold the reserves of, or act as a lender of last resort for other banks.” Fed. Reserve Bank of Philadelphia, *The First Bank of the United States* 8 (2021). Alexander Hamilton defended the First Bank of the United States precisely because its capabilities would “only concern the disposition of its own property” and “essentially resemble the rules of a private

mercantile partnership.” Final Version of an Opinion on the Constitutionality of an Act to Establish a Bank, in 8 The Papers of Alexander Hamilton 110 (H. Syrett & J. Cooke eds. 1965). . . .

The Board was the “second independent regulatory commission” in American history, following the Interstate Commerce Commission. Unlike the First and Second National Banks, which possessed no sovereign power, the Federal Reserve Board would be a “new federal agency” with “broad powers affecting the entire banking and currency system.” The Board would regulate the newly created reserve banks, private commercial banks, and private individuals.

Trump v. Cook, 146 S. Ct. 2234, 2260–62 (2026) (Thomas, J., dissenting). In short, the Banks of the United States were banks; the Board of Governors of the Federal Reserve System is a regulatory agency. For a historian’s argument that a “central banking independence” carveout from unitary executive theory cannot persuasively be explained on formalist grounds, see Lev Menand, *The Unitary Executive and the Federal Reserve*, 94 *FORDHAM L. REV.* 2089 (2026).

If, however, historical rootedness can save a regulatory agency like the Fed from Article II challenge, why were the precedents for agency independence cited in *Slaughter* insufficient? Don’t the Sinking Fund Commission, the Mint Board, the Revolutionary War Debt Commission—and even the First and Second National Banks of the United States—establish a historical tradition of creating independent administrative structures in contexts that “require some measure of nonpartisan administration?” Lev Menand, *The Federal Reserve Exception to the Slaughter Rule*, *JUST SECURITY* (July 7, 2026), <https://www.justsecurity.org/145707/slaughter-categorical-rule-cook-exception/>. In his *Slaughter* concurrence, Justice Kavanaugh articulated an entirely functionalist rationale for the Fed exception:

[W]e should not leave open the question whether the Federal Reserve can remain an independent agency in the wake of *Slaughter*. After *Slaughter*, there is a clear choice: Either the Federal Reserve may remain independent (with the Governors removable for cause, not at will), or it may not. Leaving that question open would create significant uncertainty about whether the Court might soon eliminate the Federal Reserve’s independence, and thereby expose the Federal Reserve to political influences and jeopardize the efficacy of U. S. monetary policy. Even temporary uncertainty about the status of the Federal Reserve could spark political upheaval, including confusion about whether the President could immediately remove multiple Governors at will, as well as turmoil in the U. S. and world economies.

I would not go down that road. I would not risk destabilizing the U. S. economy just so that we can further mull over an issue that, in various permutations, we have been thinking about for many years.

Trump v. Cook, 146 S. Ct. 2234, 2257 (2026) (Kavanaugh, J., concurring). Might not equally compelling concerns counsel exceptions for agencies protecting the integrity of investment markets or the safety of nuclear energy? If functionalism is what is driving the Supreme Court exception, is the Court threatening to “pass the line which circumscribes the judicial department, and to tread on legislative ground.” *McCulloch v. Maryland*, 17 U.S. 316, 423 (1819).

4. *The Future of Administrative Adjudication*. Among the anxieties stirred by *Slaughter* is the now-uncertain future of agencies that perform chiefly adjudicative functions. The majority asserts that its *Slaughter* opinion is not intended to “determine the fate of officials not before” the Court, including the judges of the Article I Tax Court and Court of Federal Claims. Yet the opinion rests on a notably expansive a definition of “executive power”: “When an agency ‘executes’ a

congressional mandate against private parties, it exercises executive power—no ifs, ands, or quasies about it.” If that is what “executive power” means and all “executive power” must be “controlled by the Chief Executive, in whom such power is vested,” then the prospects for independent judgment in Article I courts looks dim. In his *Myers* dicta, Chief Justice Taft wrote that, even if the President could not legally command the result in a particular administrative adjudication, he “may consider the decision after its rendition as a reason for removing the officer, on the ground that the discretion regularly entrusted to that officer by statute has not been, on the whole, intelligently or wisely exercised.” Such an understanding may offer cold comfort to anyone hoping for depoliticized agency adjudication.

A number of suggestions have been made to “preserve the country’s adjudicative capacity outside of Article III courts.” Samuel Estreicher, *Preserving the Adjudicative Capacity of Non-Article III Tribunals*, REGULATORY REV. (Jul. 28, 2026), <https://www.theregreview.org/2026/07/28/estreicher-preserving-the-adjudicative-capacity-of-non-article-iii-tribunals/>. In Professor Estreicher’s view, the three most plausible options consistent with *Slaughter* are “(1) turning non-Article III adjudications into purely advisory determinations; (2) assigning the appointment of non-Article III adjudicators to heads of departments or courts of law; and (3) converting administrative agencies into purely adjudicatory bodies without rulemaking authority or the ability to go to court to enforce their orders.” As an example of the third approach, Estreicher had earlier proposed replacing the National Labor Relations Board with an independent Article I Labor Court that would have no rulemaking authority. Samuel Estreicher, G. Roger King, & David S. Sherwyn, *The Labor Board Needs Restructuring, Not Destruction*, REGULATORY REV. (May 27, 2025), <https://www.theregreview.org/2025/05/27/estreicher-king-sherwyn-the-labor-board-needs-restructuring-not-destruction/>. For a contrasting view that would rely less on structural reform and more on measures to disincentive presidents from removing adjudicators or interfering with their decision making, see Aaron L. Nielson, Christopher J. Walker & Melissa F. Wasserman, *Saving Agency Adjudication*, 103 TEX. L. REV. 1013 (2025).

5. *Implications for Inferior Officers.* In his *Slaughter* concurrence, Justice Gorsuch states what he understands to be the Court’s precise holding: “To fulfill his constitutional duty to ensure the laws are faithfully executed, the Court holds, the President must have the ability to remove principal officers who exercise executive power in his name.” This formulation naturally invites the question whether *Slaughter* has implications for the removal of inferior officers.

As noted in the notes following *Myers*, Chief Justice Taft cited with apparent approval *United States v. Perkins*, 116 U. S. 483 (1886), which held that, at least for inferior officers not appointed by the President, Congress could limit the conditions for their removal. The Roberts Court has acknowledged *Perkins* as a (still) live precedent but has also characterized it as protecting only “inferior officers with limited duties and no policymaking or administrative authority.” *Seila L. LLC v. Consumer Fin. Prot. Bureau*, 591 U.S. 197, 218 (2020). Certainly, the officer suing for back pay in *Perkins*—a naval cadet engineer—would fit this description. Would *Perkins* also cover an agency economist, statistician, epidemiologist, or other professional, whose advice may influence the making of policy, as long as they have “no power to render a final decision on behalf of the United States unless permitted to do so by other Executive officers?” *United States v. Arthrex, Inc.*, 594 U.S. 1, 14 (2021), quoting *Edmond v. United States*, 520 U.S. 651, 665 (1997). In other words, do the implications of *Slaughter* for inferior officers depend upon whether actually exist civil servants who exercise “policymaking or administrative authority,” but may still be considered “inferior?” Who might such officers be?

6. *May Presidents Incapacitate Agencies?* President Trump’s dismissal of Cathy Harris from the Merit Systems Protection Board deprived it of a quorum insufficient to decide cases. In *Commission Quorums*, 78 STAN. L. REV. 1125 (2026), Professors Nicholas R. Bednar and Todd Phillips argue that presidential removals that deprive a multimember agency of the ability to execute the laws may be unconstitutional because inconsistent with the President’s “take care” obligations. At least in such cases, they urge, courts should be able to enjoin a quorum-blocking removal until the President appoints a Senate-confirmed successor to replace the agency member to be removed. *Id.* at 1196-97. They argue also that, when an agency lacks a quorum, courts should relax the ordinary requirement that parties exhaust all administrative remedies before an adjudicatory commission prior to seeking review in federal court, at least where the protection of a constitutional right is at stake. *Id.* at 1190. *Cf.*, *Clark v. Brown*, 536 F. Supp. 3d 56 (E.D. Va. 2021) (where the Merit Systems Protection Board failed to address petitioner’s claim because it lacked a quorum, petitioner could seek judicial review once the Board’s 120-day statutory period for responding to a claim had expired). Congress presumably could reduce the likelihood of “inquorate” commissions by creating default rules that allow multimember commissions to act as long as any duly qualified members are present. Would that be good policy? Should there be a judicial remedy to prevent presidents from firing all of a commission’s members? What would such a remedy look like?

7. *What if the Justices are Incompetent Historians?* The Roberts Court has repeatedly insisted that its approach to constitutional interpretation is rooted in text, history, and tradition. The leading historical works supporting the originalist case for some version of unitary executive theory are SAIKRISHNA BANGALORE PRAKASH, *IMPERIAL FROM THE BEGINNING: THE CONSTITUTION OF THE ORIGINAL EXECUTIVE* (2015) and MICHAEL W. MCCONNELL, *THE PRESIDENT WHO WOULD NOT BE KING: EXECUTIVE POWER UNDER THE CONSTITUTION* (2022). The originalist work cited most often by the *Slaughter* majority is Aditya Banzai & Saikrishna Prakash, *The Executive Power of Removal*, 136 HARV. L. REV. 1756 (2023). Yet *Slaughter* does not seriously engage in any close reading of the constitutional text and the wealth of historical sources cited in the Sotomayor dissent (like the Kagan dissent in *Seila Law*) raise a serious question whether the Roberts Court majority are “doing history” in a serious way. Since the Roberts Court began its turn towards unitary executive theory in *Free Enterprise Fund*, there has been a virtual outpouring of historical scholarship to demonstrate that “even in its weak form, unitary executive theory is inconsistent with the American constitutional tradition dating back to the founding.” Lev Menand, *The Unitary Executive and the Federal Reserve*, 94 FORDHAM L. REV. 2089, 2100 and n.72 (2026). Even Professor Prakash has concluded that the Decision of 1789 was less conclusive than *Myers* and the Roberts Court would insist:

[T]he reading of the Decision of 1789 advanced by Chief Justice Taft’s critics would seem to be correct. Because the question of a default removal power [subject to congressional limitation] was never squarely addressed, it is difficult to conclude that a majority of the House implicitly opposed the idea. Although Madison asserted that the President’s constitutional powers were “unabateable” and that Congress could not extend the Constitution’s exceptions to the executive power, these assertions were never really contested. Because Madison’s opposition refused to concede that the removal power was an executive power, these Representatives did not address whether it was a power that Congress could modify or abridge.

Saikrishna Prakash, *New Light on the Decision of 1789*, 91 CORNELL L. REV. 1021, 1072 (2006).

Without cataloguing every detail that the “revisionist” historians argue has been mischaracterized by the “originalist” historians, what if the revisionist work is sufficient to at least cast significant doubt on the soundness of unitarian originalism? Should changes in historical understanding weaken the case for stare decisis as applied to cases that relied on a questionable historical narrative to justify their outcomes? Does the very nature of historical investigation, which tends to surface more nuance and ambiguity than bright-line consensus, mean that courts should generally treat separation of powers disputes as political, rather than justiciable?

8. *The Warning of Justice (and Professor) Joseph Story*. In his COMMENTARIES ON THE CONSTITUTION, the most important American antebellum constitutional law treatise, Justice Story, who was also the Dane Professor of Law at Harvard University, argued that the Constitution, properly read, had not guaranteed presidents a unilateral removal power over executive officers. Citing Hamilton’s position in *The Federalist*, he argued that the original design contemplated that “removal occurs by operation of law when the Senate approves a new nominee to replace an incumbent official that the President wishes to replace.” David M. Driesen, *Does a Removal Power Exist? Joseph Story and Selective Living Originalism*, 39 CONST. COMMENT. 1 (2024). Story did, however, concede that the Decision of 1789 had the practical effect of settling an understanding that the Senate need *not* be involved in removing principal officers in the executive branch: “The public . . . acquiesced in this decision; and it constitutes, perhaps, the most extraordinary case in the history of the government of a power, conferred by implication on the executive by the assent of a bare majority of Congress, which has not been questioned on many other occasions.” Joseph Story, II COMMENTARIES ON THE CONSTITUTION OF THE UNITED STATES § 1543, at 354 (Thomas M. Cooley ed., Boston, Little, Brown & Co. 1873) (1833). He argued at the same time, however, that Congress, should it so choose, could still condition the removal of inferior officers on Senate consent:

[I]t will be a consolation to those who love the Union, and honor a devotion to the patriotic discharge of duty, that in regard to “inferior officers” (which appellation probably includes ninety-nine out of a hundred of the lucrative offices in the government), the remedy for any permanent abuse [of presidential removal power] is still within the power of Congress, by the simple expedient of requiring the consent of the senate to removals in such cases.

Id., § 1544, at 356.

In urging that the Constitution had deprived presidents of a comprehensive removal power, Story warned of what an unbridled removal power might portend:

[I]t is utterly impossible not to feel, that, if this unlimited power of removal does exist, it may be made, in the hands of a bold and designing man, of high ambition and feeble principles, an instrument of the worst oppression and most vindictive vengeance It would convert all the officers of the country into the mere tools and creatures of the President. A dependence so servile on one individual would deter men of high and honorable minds from engaging in the public service. And if, contrary to expectation, such men should be brought into office, they would be reduced to the necessity of sacrificing every principle of independence to the will of the chief magistrate, or of exposing themselves to the disgrace of being removed from office

Id., § 1539, at 351-352. Do you think Story was alarmist or prescient in his anxiety?